

# AI Legal Knowledge Base

Comprehensive Legal Reference for a RAG-Based AI Legal Assistant

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## About This Document

This knowledge base is designed as a reference source for an AI Legal Aid Multi-Agent System, covering Indian constitutional law, the new criminal codes (BNS, BNSS, BSA), key commercial and regulatory statutes, landmark judgments, government notifications, compliance guidance, and frequently asked legal questions.

**Disclaimer:** This document provides general legal information in plain English for educational and reference purposes. It is not a substitute for advice from a licensed lawyer. Laws, section numbers, thresholds, and rates change periodically — always verify current provisions against official government sources before relying on this content for actual legal or compliance decisions.

## Chapter 1 — The Constitution of India

### 1.1 Introduction and History

The Constitution of India is the supreme legal document of the country. It was drafted by the Constituent Assembly, chaired by Dr. B.R. Ambedkar as Chairman of the Drafting Committee, and was adopted on 26 November 1949. It came into force on 26 January 1950, a date chosen to commemorate the 1930 declaration of “Purna Swaraj” (complete independence). India follows a **written, rigid-yet-flexible, federal-with-unitary-bias** Constitution — one of the longest in the world, with 25 Parts, over 470 Articles (after renumbering through amendments), and 12 Schedules.

#### Key historical influences:

| Feature borrowed                                   | Source country |
|----------------------------------------------------|----------------|
| Parliamentary system, Rule of Law                  | United Kingdom |
| Fundamental Rights                                 | United States  |
| Directive Principles of State Policy               | Ireland        |
| Federal structure with a strong Centre             | Canada         |
| Concurrent List                                    | Australia      |
| Fundamental Duties, Five-Year Plans (historically) | USSR           |
| Emergency provisions                               | Weimar Germany |

### 1.2 The Preamble

The Preamble declares India to be a **Sovereign, Socialist, Secular, Democratic Republic** securing to all citizens **Justice, Liberty, Equality, and Fraternity**. The words “Socialist” and “Secular” were inserted by the 42nd Amendment (1976). The Preamble is not directly enforceable in court but is used as a tool of interpretation and was held to be part of the Constitution in *Kesavananda Bharati v. State of Kerala* (1973).

**Plain-English meaning:** - *Sovereign* — India is free from external control and can make its own decisions. - *Socialist* — the State aims to reduce inequality and works toward the welfare of all. - *Secular* — the State has no official religion and treats all religions equally. - *Democratic* — the government is elected by the people. - *Republic* — the head of state (the President) is elected, not a hereditary monarch.

### 1.3 Citizenship (Articles 5-11)

India follows **single citizenship** — unlike the USA, there is no separate state citizenship. Citizenship can be acquired by:

1. **Birth** — generally, birth in India (subject to conditions relating to parents’ status under the Citizenship Act, 1955, as amended).
2. **Descent** — born outside India to Indian citizen parents, subject to registration requirements.
3. **Registration** — for specified categories such as persons of Indian origin.
4. **Naturalisation** — for foreigners who fulfil residency and other conditions.
5. **Incorporation of territory** — if new territory becomes part of India.

Citizenship can be lost by renunciation, termination (voluntarily acquiring another country's citizenship), or deprivation (by government order in specific circumstances, e.g., fraud in acquiring citizenship).

## 1.4 Fundamental Rights (Part III, Articles 12-35)

Fundamental Rights are justiciable rights guaranteed against the **State** (Article 12 defines "State" broadly to include the Union and State governments, Parliament, State legislatures, and other authorities within India). They can be enforced directly in the Supreme Court (Article 32) or High Courts (Article 226).

### 1.4.1 Right to Equality (Articles 14-18)

- **Article 14** — Equality before law and equal protection of laws. Permits "reasonable classification" (different treatment is allowed if based on an intelligible differentia with a rational nexus to the object sought).
- **Article 15** — Prohibits discrimination on grounds of religion, race, caste, sex, or place of birth; allows special provisions for women, children, and socially/educationally backward classes.
- **Article 16** — Equality of opportunity in public employment; permits reservations for backward classes.
- **Article 17** — Abolishes untouchability in any form; enforceable even against private individuals.
- **Article 18** — Abolishes titles (except military/academic distinctions).

*Example:* A government job notification reserving seats for Scheduled Castes and Scheduled Tribes does not violate Article 14 or 16 because it is a permitted "special provision," not arbitrary discrimination.

### 1.4.2 Right to Freedom (Articles 19-22)

- **Article 19(1)** guarantees six freedoms to citizens: (a) speech and expression, (b) assembly, (c) association, (d) movement, (e) residence, (g) profession/occupation/trade/business. (Right to property under 19(1)(f) was removed by the 44th Amendment.) Each freedom is subject to "reasonable restrictions" listed in Article 19(2)-(6), such as public order, decency, morality, sovereignty and integrity of India, and security of the State.
- **Article 20** — Protection in respect of conviction for offences: no ex-post-facto law, no double jeopardy, no self-incrimination.
- **Article 21** — Protection of life and personal liberty: "No person shall be deprived of his life or personal liberty except according to procedure established by law." Courts have expanded this into a vast range of rights — right to privacy, right to a clean environment, right to livelihood, right to a speedy trial, right to health, right to shelter, and more.
- **Article 21A** — Right to free and compulsory education for children aged 6-14 years (added by the 86th Amendment).
- **Article 22** — Protection against arbitrary arrest and detention; right to be informed of grounds of arrest, right to consult a lawyer, right to be produced

before a magistrate within 24 hours.

*Example:* A journalist publishing a critical opinion piece about government policy is exercising Article 19(1)(a); the government cannot ban the article simply because it dislikes the criticism, unless the piece falls within a recognised restriction such as incitement to violence.

#### 1.4.3 Right Against Exploitation (Articles 23-24)

- **Article 23** — Prohibits human trafficking and forced labour (begar).
- **Article 24** — Prohibits employment of children below 14 years in factories, mines, or other hazardous work.

#### 1.4.4 Right to Freedom of Religion (Articles 25-28)

- **Article 25** — Freedom of conscience and free profession, practice, and propagation of religion, subject to public order, morality, health, and other Fundamental Rights.
- **Article 26** — Freedom to manage religious affairs.
- **Article 27** — No person can be compelled to pay taxes for promotion of a particular religion.
- **Article 28** — Freedom from religious instruction in wholly State-funded educational institutions.

#### 1.4.5 Cultural and Educational Rights (Articles 29-30)

- **Article 29** — Protects the right of any section of citizens to conserve their distinct language, script, or culture.
- **Article 30** — Right of minorities to establish and administer educational institutions of their choice.

#### 1.4.6 Right to Constitutional Remedies (Articles 32-35)

- **Article 32** — Allows a person to move the Supreme Court directly for enforcement of Fundamental Rights. Dr. Ambedkar called this the “heart and soul” of the Constitution. Courts may issue five types of **writs**:

| Writ          | Purpose                                                                              |
|---------------|--------------------------------------------------------------------------------------|
| Habeas Corpus | “Produce the body” — challenges illegal detention                                    |
| Mandamus      | Commands a public authority to perform a duty it has failed to perform               |
| Prohibition   | Directs a lower court/tribunal to stop exceeding its jurisdiction                    |
| Certiorari    | Quashes an order already passed by a lower court/tribunal acting beyond jurisdiction |



| Writ         | Purpose                                                           |
|--------------|-------------------------------------------------------------------|
| Quo Warranto | Questions the legal authority of a person holding a public office |

- **Article 226** — Gives High Courts similar (in fact wider) writ jurisdiction, covering both Fundamental Rights and other legal rights.
- **Article 33** — Parliament can restrict Fundamental Rights for armed forces and police personnel.
- **Article 34** — Restrictions on rights during martial law.
- **Article 35** — Power to make laws to give effect to certain rights rests with Parliament, not State legislatures.

**Key Cases (brief):** - *Maneka Gandhi v. Union of India* (1978) — held that “procedure established by law” under Article 21 must be fair, just, and reasonable, linking Articles 14, 19, and 21 together (“Golden Triangle”). - *Justice K.S. Puttaswamy v. Union of India* (2017) — recognised the right to privacy as part of Article 21. - *Navtej Singh Johar v. Union of India* (2018) — decriminalised consensual same-sex relations between adults, reading down Section 377 IPC (predecessor law).

## 1.5 Directive Principles of State Policy (Part IV, Articles 36-51)

DPSPs are guidelines for governance — they are **not enforceable in any court** (Article 37), but they are “fundamental in the governance of the country” and courts frequently use them to interpret laws and Fundamental Rights harmoniously. Examples include:

- Article 39 — equal pay for equal work, distribution of resources to serve common good.
- Article 41 — right to work, education, and public assistance in certain cases.
- Article 44 — endeavour to secure a Uniform Civil Code.
- Article 45 — early childhood care and education.
- Article 48A — protection and improvement of environment and forests.

*Example:* A law providing free legal aid to the poor (Article 39A) gives effect to a Directive Principle, even though the principle itself cannot be enforced directly in court.

## 1.6 Fundamental Duties (Part IVA, Article 51A)

Added by the 42nd Amendment (1976), there are now **11 Fundamental Duties**, including: respecting the Constitution, the National Flag, and the National Anthem; cherishing the freedom struggle; upholding sovereignty and integrity of India; defending the country; promoting harmony; preserving composite culture; protecting the environment; developing scientific temper; safeguarding public property; striving for excellence; and (11th duty, added 2002) providing education to a child/ward between ages 6-14.

Fundamental Duties are also not directly enforceable but can guide the interpretation of laws.

## 1.7 Structure of Government

### 1.7.1 The Union Executive

- **President** (Articles 52-62) — ceremonial Head of State, elected indirectly by an electoral college of MPs and MLAs; acts on the aid and advice of the Council of Ministers (Article 74).
- **Vice-President** — ex-officio Chairman of the Rajya Sabha.
- **Prime Minister and Council of Ministers** — real executive authority; collectively responsible to the Lok Sabha (Article 75).

### 1.7.2 Parliament (Articles 79-122)

- **Lok Sabha** (House of the People) — directly elected, normal term 5 years, max strength 552 (post-2026 delimitation figures may vary).
- **Rajya Sabha** (Council of States) — permanent body, one-third members retiring every two years, represents States.
- A **Bill** becomes law after passage in both Houses and Presidential assent (Article 111). **Money Bills** (Article 110) can only originate in the Lok Sabha.

### 1.7.3 The Judiciary (Articles 124-147, 214-231)

- **Supreme Court** — apex court, original, appellate, and advisory jurisdiction; final interpreter of the Constitution.
- **High Courts** — one per State (or shared among States), with writ jurisdiction under Article 226 wider than the Supreme Court's Article 32.
- Subordinate courts complete the three-tier judicial hierarchy.

### 1.7.4 State Government

Each State has a **Governor** (Articles 153-167) as nominal head, a **Chief Minister and Council of Ministers** as real executive, and a State Legislature (unicameral or bicameral).

### 1.7.5 Distribution of Legislative Powers (Seventh Schedule)

Three lists divide law-making power: - **Union List** (e.g., defence, foreign affairs, banking) — Parliament alone legislates. - **State List** (e.g., police, public health, agriculture) — State legislatures alone legislate. - **Concurrent List** (e.g., education, marriage, criminal law) — both can legislate; in case of conflict, Union law prevails (Article 254), subject to exceptions.

## 1.8 Emergency Provisions (Articles 352-360)

| Type                               | Article | Ground                                         | Effect                                                                                               |
|------------------------------------|---------|------------------------------------------------|------------------------------------------------------------------------------------------------------|
| National Emergency                 | 352     | War, external aggression, armed rebellion      | Centre gets overriding power over States; some Fundamental Rights may be suspended                   |
| President's Rule (State Emergency) | 356     | Failure of constitutional machinery in a State | President assumes State functions; State legislature may be dissolved/suspended                      |
| Financial Emergency                | 360     | Threat to financial stability/credit of India  | Centre can direct States on financial matters; salary cuts for government/judicial officers possible |

National Emergency has been proclaimed three times in India's history (1962, 1971, and 1975-77). The 44th Amendment introduced safeguards after the 1975 Emergency, including mandatory parliamentary approval and judicial review of the proclamation.

## 1.9 Constitutional Amendments (Article 368)

The Constitution can be amended by Parliament through three methods depending on the provision: 1. **Simple majority** — for matters not listed as requiring special procedure (e.g., creation of new States). 2. **Special majority** — two-thirds of members present and voting in each House, and majority of total membership (used for most Part III/other provisions). 3. **Special majority + ratification by half the States** — for federal provisions (e.g., election of the President, distribution of legislative powers).

**Basic Structure Doctrine:** In *Kesavananda Bharati v. State of Kerala* (1973), the Supreme Court held that Parliament's amending power under Article 368 is not unlimited — it cannot alter the "basic structure" of the Constitution (e.g., supremacy of the Constitution, separation of powers, judicial review, federalism, secularism). This is one of the most important constitutional principles in Indian law.

## 1.10 Local Government (Panchayati Raj and Municipalities)

The 73rd Amendment (1992) added Part IX, giving constitutional status to **Panchayati Raj Institutions** (village, block, and district level rural self-government). The 74th Amendment (1992) added Part IXA, giving constitutional status to **Municipalities** (urban local self-government). Both provide for reservation of seats for SCs, STs, and women (not less than one-third).

### 1.11 Chapter Summary

- The Constitution is the supreme law of India, in force since 26 January 1950.
- Fundamental Rights (Part III) are enforceable in court; Directive Principles (Part IV) are not, but guide governance.
- Article 32 (Supreme Court) and Article 226 (High Courts) allow enforcement of rights through writs.
- The Basic Structure Doctrine limits Parliament’s power to amend the Constitution.
- India has a federal structure with a unitary bias, three-tier government (Union, State, Local), and an independent judiciary.
- Emergency provisions allow the Centre to assume greater powers during a national, State, or financial crisis, subject to safeguards.

### 1.12 Practice Questions

1. What is the difference between a Fundamental Right and a Directive Principle in terms of enforceability?
2. Which writ would you use to challenge illegal detention by police?
3. Explain the “Basic Structure Doctrine” with reference to *Kesavananda Bharati*.
4. Under what circumstances can the President’s Rule be imposed on a State?
5. Name any five Fundamental Duties under Article 51A.

### 1.13 Legal Notes

- This chapter provides general explanations for informational purposes and does not constitute legal advice.
- Article numbers and amendment details reflect the Constitution as generally understood; readers relying on this for litigation should verify against the current official text, as amendments may have occurred. # Chapter 2 — Bharatiya Nyaya Sanhita (BNS), 2023

## 2.1 Introduction

The Bharatiya Nyaya Sanhita (BNS), 2023 replaced the Indian Penal Code (IPC), 1860 as India’s principal substantive criminal law, effective 1 July 2024. It retains most of the IPC’s substance while renumbering sections, adding new offences (e.g., organised crime, terrorism, mob lynching), removing some archaic provisions (e.g., sedition replaced with a redefined offence against the State), and introducing **community service** as a punishment for minor offences.

#### Comparison snapshot (illustrative, not exhaustive):

| Concept           | IPC       | BNS       |
|-------------------|-----------|-----------|
| Total chapters    | 23        | 20        |
| Total sections    | 511       | 358       |
| Murder            | S.302     | S.103     |
| Culpable homicide | S.299/304 | S.100/105 |

| Concept     | IPC       | BNS                                                                     |
|-------------|-----------|-------------------------------------------------------------------------|
| Theft       | S.378/379 | S.303                                                                   |
| Cheating    | S.415/420 | S.316/318                                                               |
| Defamation  | S.499/500 | S.356                                                                   |
| Sedition    | S.124A    | Replaced by S.152 (acts endangering sovereignty/unity/integrity)        |
| New offence | —         | Organised crime (S.111), Terrorist act (S.113), Mob lynching (S.103(2)) |

*Note: Section numbers reflect the general recodification pattern; readers should verify exact section numbers against the current official BNS text before relying on them in legal proceedings.*

## 2.2 General Principles of Criminal Liability

Every offence generally requires two elements: - **Actus reus** — the guilty act (what was physically done). - **Mens rea** — the guilty mind (intention, knowledge, or recklessness).

Exceptions exist for **strict liability offences** where intent is not required. The BNS also recognises **General Exceptions** (mistake of fact, accident, necessity, consent, private defence, insanity, intoxication under limited conditions) that can excuse or reduce liability.

## 2.3 Offences Against the Human Body

### 2.3.1 Murder and Culpable Homicide

- **Culpable homicide** — causing death with the intention of causing death, or with intention/knowledge likely to cause death, but not amounting to murder (e.g., due to sudden and grave provocation, exceeding right of private defence, or sudden fight without premeditation).
- **Murder** — culpable homicide becomes murder when the act is done with clear intention to cause death, to cause a bodily injury the offender knows is likely to be fatal, or the act is so imminently dangerous that it must, in all probability, cause death.

*Example:* A hits B with a stick during a sudden quarrel and B dies from the single blow, without A intending to kill — this may be culpable homicide not amounting to murder. If A had instead stabbed B multiple times in vital organs, courts are more likely to find murder due to the clear intention/knowledge involved.

**Punishment:** Murder — death or life imprisonment, plus fine. Culpable homicide not amounting to murder — life imprisonment or up to 10 years, plus fine, depending on presence of intent to cause death.

### 2.3.2 Hurt and Grievous Hurt

- **Hurt** — causing bodily pain, disease, or infirmity.
- **Grievous hurt** — includes emasculation, permanent loss of sight/hearing, loss of a limb, permanent disfiguration of the face, fracture/dislocation of a bone, or any hurt endangering life.

### 2.3.3 Assault and Criminal Force

- **Assault** — a gesture or preparation that causes another person to apprehend criminal force is about to be used against them (no actual physical contact needed).
- **Criminal force** — actual use of force on another person without consent, intending to cause injury, fear, or annoyance.

### 2.3.4 Kidnapping and Abduction

Kidnapping from India, from lawful guardianship, and abduction are separately defined; punishment increases where the purpose is murder, ransom, or unlawful compulsion.

## 2.4 Offences Against Property

### 2.4.1 Theft

Dishonestly taking movable property out of the possession of another person without consent, intending to permanently deprive them of it. **Punishment:** imprisonment up to 3 years, fine, or both; enhanced punishment for theft in a dwelling house or by a person in a position of trust.

*Example:* Taking a colleague's phone from their desk without permission, intending to keep it, is theft — dishonest intention at the time of taking is what matters, even if the taker later claims they meant to return it.

### 2.4.2 Extortion, Robbery, and Dacoity

- **Extortion** — dishonestly obtaining property by putting a person in fear of injury.
- **Robbery** — theft or extortion accompanied by force or threat of instant harm.
- **Dacoity** — robbery committed by five or more persons acting together; carries significantly higher punishment.

### 2.4.3 Criminal Breach of Trust

When a person entrusted with property (money, goods) dishonestly misappropriates or converts it for their own use, in violation of a legal contract or direction. Common in employer-employee, banker-customer, and agent-principal relationships.

*Example:* An accountant who transfers company funds into a personal account instead of using them for company expenses commits criminal breach of trust.

#### 2.4.4 Cheating and Fraud

- **Cheating** — deceiving a person and thereby dishonestly inducing them to deliver property, or to do/omit an act they would not otherwise do, causing harm.
- **Cheating by personation** — deceiving by pretending to be another person. Punishment increases where cheating induces delivery of property, or where the offender knew from the outset they had no intention of fulfilling a promise (e.g., taking payment for goods never intended to be delivered).

#### 2.4.5 Forgery

Making a false document or electronic record, or part of one, with intent to cause damage or injury, to support a claim, or to commit fraud. Includes forging signatures, certificates, and digital documents.

### 2.5 Offences Against Women and Children

The BNS retains and, in places, strengthens protections including: - Sexual offences, with graded punishment based on severity and vulnerability of the victim (e.g., minors). - Provisions addressing sexual exploitation obtained through false promise of marriage or other deceitful means. - Cruelty by husband or relatives (dowry-related cruelty). - Provisions on stalking, voyeurism, and outraging modesty. - Enhanced punishment where the victim is a minor or the offence is gang-committed.

### 2.6 Offences Against the State and Public Tranquility

- Waging war against the Government of India.
- Acts endangering sovereignty, unity, and integrity of India (replaces the earlier sedition provision, with a narrower scope focused on secession, armed rebellion, and subversive activities, rather than mere criticism of government).
- Unlawful assembly and rioting.
- **Organised crime** (new in BNS) — offences committed by crime syndicates for financial or other gain, including cybercrime, extortion rackets, and contract killing.
- **Terrorist acts** (new in BNS) — acts intending to threaten the unity, integrity, or security of India, or to strike terror in the population.
- **Mob lynching** — murder committed by a group of five or more persons on grounds such as race, caste, sex, place of birth, language, or personal belief, explicitly punishable with death or life imprisonment.

### 2.7 Defamation

Making or publishing an imputation about a person, intending to harm (or knowing it is likely to harm) their reputation. **Defences** include: truth for public good, fair comment on public conduct of public servants, and fair reporting of court/legislative proceedings. Both criminal defamation (under BNS) and civil defamation (as a tort, seeking damages) exist in India.

*Example:* Publishing a false claim online that a business owner is running a scam, without evidence, can expose the publisher to both criminal defamation liability and a civil defamation suit.

## 2.8 Cyber Crimes under the BNS

While the primary cyber law framework remains the Information Technology Act, 2000 (see Chapter 7), the BNS covers cyber-enabled versions of traditional offences — for example, cheating by personation using electronic means, forgery of electronic records, and criminal intimidation via digital communication — allowing prosecution alongside IT Act provisions.

## 2.9 Attempt, Abetment, and Criminal Conspiracy

- **Attempt** — taking a step beyond preparation towards committing an offence, which fails or is interrupted; generally punishable, often with a lesser sentence than the completed offence.
- **Abetment** — instigating, engaging in a conspiracy for, or intentionally aiding an offence.
- **Criminal conspiracy** — an agreement between two or more persons to commit an illegal act, or a legal act by illegal means; punishable even if the act is not ultimately carried out, in many cases subject to proof of some overt act.

## 2.10 Bail Concepts (Cross-reference to Chapter 3)

Offences under the BNS are classified (via accompanying BNSS classification schedules) as **bailable** or **non-bailable**, and **cognizable** or **non-cognizable**. Bailable offences carry an entitlement to bail; non-bailable offences require judicial discretion based on factors like severity of the offence, risk of tampering with evidence, and flight risk. See Chapter 3 for procedural details of arrest and bail.

## 2.11 Chapter Summary

- The BNS, 2023 replaced the IPC from 1 July 2024, largely retaining substance while renumbering sections and adding new offences (organised crime, terrorism, mob lynching).
- Criminal liability generally requires both a guilty act (*actus reus*) and a guilty mind (*mens rea*), subject to General Exceptions.
- Property offences (theft, extortion, robbery, dacoity, criminal breach of trust, cheating, forgery) and offences against the person (hurt, assault, murder, culpable homicide) form the bulk of everyday criminal law.
- Defamation exists as both a criminal offence and a civil wrong, with truth and fair comment as key defences.
- Attempt, abetment, and conspiracy extend criminal liability beyond the person who directly commits an offence.



## 2.12 Practice Questions

1. Distinguish between culpable homicide and murder with an example.
2. What are the essential elements of “theft” under the BNS?
3. How does criminal breach of trust differ from cheating?
4. What new offences did the BNS introduce that did not exist under the IPC?
5. Name two defences available in a defamation case.

## 2.13 Legal Notes

- Exact BNS section numbers should be cross-checked against the official gazette text before use in any actual legal filing; this chapter provides general explanations rather than a verified section-by-section citation table.
- This chapter is for informational purposes only and is not a substitute for advice from a qualified criminal lawyer. # Chapter 3 — Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023

## 3.1 Introduction

The Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023 replaced the Code of Criminal Procedure (CrPC), 1973, effective 1 July 2024. It governs the **procedure** for investigating, arresting, prosecuting, and trying criminal offences — i.e., “how” the law defined in the BNS (Chapter 2) is enforced. Key changes from the CrPC include time-lines for investigation and trial, mandatory forensic investigation for serious offences, provisions for audio-video recording of statements and search/seizure, and expanded use of technology (e-summons, video-conference trials).

## 3.2 First Information Report (FIR)

An FIR is the first written record of information about a **cognizable offence**, given to the police, which sets criminal law in motion.

- **Zero FIR** — can be registered at any police station regardless of where the offence occurred, and is later transferred to the police station having jurisdiction. This prevents victims from being turned away on jurisdictional grounds.
- **E-FIR** — BNSS allows registration of FIRs electronically for certain categories of offences, with the informant required to sign within three days.
- If police refuse to register an FIR for a cognizable offence, the complainant can approach the Superintendent of Police, or a Magistrate under the relevant provision directing registration.
- For **non-cognizable offences**, police cannot investigate without the Magistrate’s permission; the informant is instead directed to approach the Magistrate directly.

*Example:* If a theft occurs in City A but the victim is currently in City B, they can file a Zero FIR at a police station in City B, which will then transfer the case to City A’s jurisdiction.

### 3.3 Arrest

- Police can arrest without a warrant for cognizable offences (Section on arrest without warrant).
- For less serious offences (punishable with up to 3 years), BNSS discourages routine arrest and requires recording reasons in writing, considering factors like age, health, and likelihood of appearance.
- **Rights of the arrested person:**
- Right to know the grounds of arrest.
- Right to inform a friend/relative about the arrest and place of detention.
- Right to consult a lawyer of choice.
- Right to be produced before a Magistrate within **24 hours** (excluding travel time).
- Right to free legal aid if unable to afford a lawyer.
- Special safeguards for women (arrest generally by/in the presence of women police, generally not after sunset/before sunrise except in exceptional circumstances with prior permission).

*Example:* If police arrest someone at 10 PM, they must produce that person before a Magistrate within 24 hours, i.e., by around 10 PM the next day (excluding time needed for travel to court).

### 3.4 Investigation

Investigation covers all steps taken by police to collect evidence — visiting the crime scene, recording statements of witnesses, collecting physical/forensic/digital evidence, and arresting suspects.

- **Mandatory forensic investigation** — BNSS requires a forensic expert to visit the crime scene and collect evidence for offences punishable with 7 years or more imprisonment, and for such evidence collection to be video-recorded.
- **Search and seizure** — police can search premises with a warrant, or without one in urgent circumstances (recording reasons); BNSS requires audio-video recording of the search process wherever feasible.
- **Statements of witnesses** — recorded under the relevant provision; statements to police are not admissible as substantive evidence in trial (though can be used to contradict a witness).
- **Time limit for investigation** — police must generally complete investigation and file a chargesheet within a prescribed period (commonly 60 or 90 days depending on the offence's punishment), failing which the accused may become entitled to "default bail."

### 3.5 Bail

- **Bailable offences** — bail is a matter of right; the accused can be released on furnishing a bond, with or without sureties.
- **Non-bailable offences** — bail is at the court's discretion, weighing factors such as the nature and gravity of the offence, likelihood of the accused fleeing or tampering with evidence, and the accused's criminal history.

- **Anticipatory bail** — sought in advance of arrest by a person apprehending arrest for a non-bailable offence, filed before the Sessions Court or High Court.
- **Default bail** (also called “statutory bail”) — if the chargesheet is not filed within the prescribed period, the accused is entitled to bail as a matter of right.
- BNSS introduces provisions allowing undertrial prisoners who have served a specified proportion of the maximum sentence for their alleged offence (subject to conditions and exclusions for certain serious/multiple offences) to be considered for release.

*Example:* A person accused of a bailable offence like simple hurt can obtain bail directly from the police station or the court as a matter of right, without needing to show any special grounds.

### 3.6 Trial

- **Framing of charges** — after investigation, if there is sufficient material, the court formally frames charges stating the specific offence(s) alleged.
- **Plea** — the accused pleads guilty or not guilty.
- **Prosecution evidence** — witnesses are examined, cross-examined by the defence.
- **Defence evidence** — the accused may lead evidence in their defence (not compulsory, since the burden of proof lies on the prosecution).
- **Final arguments and judgment** — followed by sentencing (if convicted) or acquittal.
- BNSS mandates that trial in sessions cases should generally be conducted on a day-to-day basis where possible, and introduces timelines for pronouncing judgment after conclusion of arguments (commonly within 30 days, extendable up to 60 days with reasons).
- **Trial in absentia** — BNSS allows, in specified circumstances, trial of a “proclaimed offender” who has evaded arrest, to proceed without their presence, subject to safeguards.

### 3.7 Appeals

- A person convicted by a trial court can appeal to a higher court (e.g., Sessions Court to High Court, or as prescribed based on the sentencing court).
- The State/prosecution can, in certain circumstances, appeal against an acquittal or against inadequate sentencing, with permission of the higher court.
- Further appeal to the Supreme Court is possible via a Special Leave Petition under Article 136 of the Constitution or on specific grounds provided in law.

### 3.8 Rights of the Accused

- Presumption of innocence until proven guilty.
- Right against self-incrimination (Article 20(3) of the Constitution).
- Right to a fair, speedy, and public trial.
- Right to legal representation, including free legal aid.
- Right to cross-examine prosecution witnesses.

- Protection against double jeopardy (Article 20(2)).

### 3.9 Rights of Victims

- Right to be informed about the progress of investigation and trial.
- Right to file a protest petition if dissatisfied with a police closure report.
- Right to engage a private advocate to assist the public prosecutor (with court permission).
- Right to seek compensation under victim compensation schemes, and interim compensation in appropriate cases.
- Right to be heard at the bail and sentencing stage in serious offences (e.g., before granting bail in certain grave offences).

### 3.10 Police Powers and Court Hierarchy in Criminal Matters

| Level               | Role                                                                                                |
|---------------------|-----------------------------------------------------------------------------------------------------|
| Police              | Investigation, arrest, filing chargesheet                                                           |
| Judicial Magistrate | Trial of minor offences, remand, bail (in many cases), committal of serious cases to Sessions Court |
| Sessions Court      | Trial of serious offences (e.g., murder), appeals from Magistrate courts                            |
| High Court          | Appeals from Sessions Court, writ jurisdiction, bail, quashing of FIR/proceedings                   |
| Supreme Court       | Final appellate authority, constitutional questions                                                 |

### 3.11 Chapter Summary

- The BNSS governs criminal procedure from FIR registration through investigation, arrest, bail, trial, and appeal.
- Zero FIR and e-FIR provisions make it easier for victims to register complaints regardless of location.
- Arrested persons have specific rights, including production before a Magistrate within 24 hours and free legal aid.
- Bail depends on whether an offence is bailable or non-bailable; default bail protects against indefinite pre-chargesheet detention.
- Victims now have an expanded set of statutory rights, including compensation and participation in proceedings.

### 3.12 Practice Questions

1. What is a Zero FIR and why is it useful?
2. What rights does a person have immediately after arrest?
3. Explain the difference between bailable and non-bailable offences.

4. What is “default bail” and when does it apply?
5. Name two rights available to crime victims under the BNSS.

### 3.13 Legal Notes

- Specific timelines (e.g., 60/90-day investigation periods) vary depending on the offence’s prescribed punishment; readers should verify the applicable period for their specific case.
- This chapter provides a general procedural overview and is not a substitute for advice from a criminal lawyer familiar with the specific facts of a case. # Chapter 4 — Bharatiya Sakshya Adhiniyam (BSA), 2023

## 4.1 Introduction

The Bharatiya Sakshya Adhiniyam (BSA), 2023 replaced the Indian Evidence Act, 1872, effective 1 July 2024. It governs what evidence is **admissible** (allowed to be considered) in court, how facts are proved, and the rules around witnesses, documents, and the burden of proof. A key update is expanded and clarified treatment of **electronic and digital evidence**, reflecting how much modern evidence (emails, WhatsApp chats, CCTV footage, GPS data) is now digital in nature.

## 4.2 Basic Concepts

- **Fact in issue** — a fact that is directly relevant to the existence of a right, liability, or disability being decided by the court.
- **Relevant fact** — a fact connected to the fact in issue in a way recognised by law (e.g., cause, effect, motive, preparation).
- **Evidence** — includes oral evidence (witness statements made in court) and documentary evidence (including electronic records).
- **Proof** — a fact is “proved” when the court, considering the matters before it, believes it exists or considers its existence so probable that a prudent person would act on the assumption it exists.

## 4.3 Oral Evidence

Oral evidence must, in general, be **direct** — meaning a witness can only testify to what they personally saw, heard, or perceived, not what someone else told them (this is the rule against **hearsay**). Exceptions to the hearsay rule include: - **Dying declarations** — statements made by a person about the cause of their death, made when they believed death was imminent, are admissible even though the person cannot be cross-examined. - **Statements forming part of the same transaction** (res gestae). - Certain admissions and confessions made under specific statutory conditions.

## 4.4 Documentary Evidence

- **Primary evidence** — the original document itself.

- **Secondary evidence** — copies, oral accounts of the document’s contents, etc., admissible only in specific circumstances (e.g., the original is lost, destroyed, or in the possession of the opposing party who refuses to produce it).

## 4.5 Electronic Evidence

The BSA significantly expands and modernises treatment of electronic evidence compared to the 1872 Act:

- **Electronic or digital record** is now treated at par with paper documents for purposes of admissibility, provided proper authentication requirements are met.
- **Certificate requirement** — electronic evidence (e.g., CCTV footage, call records, WhatsApp chats, emails, computer output) must generally be accompanied by a certificate describing how it was produced, the device used, and confirming the device was functioning properly and the data was not tampered with. This is commonly referred to by its equivalent of the earlier “Section 65B certificate” requirement.
- Courts have held that without such a certificate, electronic evidence may not be admissible as primary proof (subject to limited exceptions), reinforcing the importance of proper digital evidence handling by investigators and litigants.

*Example:* A business relying on a WhatsApp conversation to prove a contractual agreement must be able to produce the chat along with a certificate confirming which device it was extracted from and that the extraction process preserved the data’s integrity.

### 4.5.1 Specific Categories of Digital Evidence

- **CCTV footage** — admissible as electronic evidence; chain of custody (who accessed/copied the footage, and when) matters for its reliability.
- **Email and digital communications** — admissible with authentication of the sender’s identity and the message’s integrity.
- **Digital signatures** — a document digitally signed using a recognised electronic signature system is presumed valid and unaltered unless proven otherwise, similar to the presumption for physical signatures.
- **GPS/location data, metadata** — increasingly used as corroborative evidence, particularly in cybercrime and fraud investigations.

## 4.6 Witnesses

- Any person is generally competent to testify, provided they understand the questions and can give rational answers (this can include children, subject to a preliminary assessment by the court).
- A witness who changes their testimony from what they earlier stated to police, in a way that damages the case of the party who called them, may be declared “**hostile**,” allowing that party to cross-examine their own witness.
- **Spousal privilege** — certain communications between spouses during the marriage are protected from disclosure, subject to specific statutory exceptions (e.g.,

proceedings between the spouses themselves, or criminal proceedings where one spouse is accused of an offence against the other).

#### 4.7 Expert Witnesses

Where a court needs to assess a technical or scientific matter beyond common knowledge (e.g., handwriting analysis, DNA testing, cause of death, digital forensics, financial fraud tracing), it may rely on the opinion of a suitably qualified **expert witness**. Expert opinion is not conclusive by itself — the court weighs it alongside other evidence.

#### 4.8 Burden of Proof

- In civil cases, the party asserting a fact generally bears the burden of proving it (“he who asserts must prove”).
- In criminal cases, the prosecution bears the burden of proving the accused’s guilt **beyond reasonable doubt**; the accused does not need to prove innocence.
- **Reverse burden provisions** — in specific statutory contexts (e.g., certain dowry death cases, or possession of contraband under special laws), once the prosecution establishes certain foundational facts, the burden shifts to the accused to explain or rebut the presumption raised by law.

*Example:* In a dowry death case, once the prosecution proves the woman died an unnatural death within seven years of marriage and had faced cruelty/harassment related to dowry demands shortly before death, the burden shifts to the husband/in-laws to explain the circumstances.

#### 4.9 Admissibility and Presumptions

Certain facts are **presumed** by law unless disproved, easing the burden on the party relying on them — for example, presumption of genuineness of certain government/public documents, presumption regarding the age of a person from birth records, and presumptions attached to properly authenticated electronic records and digital signatures.

#### 4.10 Chapter Summary

- The BSA governs what evidence courts can consider and how facts must be proved.
- Oral evidence must generally be direct (first-hand); hearsay is inadmissible except in defined exceptions like dying declarations.
- Electronic evidence (CCTV, WhatsApp, email, digital signatures) is admissible but typically requires a certificate authenticating its source and integrity.
- The burden of proof lies on the party asserting a fact; in criminal cases, this means the prosecution must prove guilt beyond reasonable doubt, subject to specific reverse-burden provisions in certain statutes.
- Expert witnesses assist courts with technical/scientific matters but their opinion is not binding on the court.

#### 4.11 Practice Questions

1. What is the difference between primary and secondary evidence?
2. Why is a certificate typically required for electronic evidence to be admissible?
3. What is a “dying declaration” and why is it an exception to the hearsay rule?
4. Explain the concept of “reverse burden of proof” with an example.
5. What makes a witness “hostile,” and what happens procedurally when that occurs?

#### 4.12 Legal Notes

- This chapter is a general explanatory overview; the precise certificate format and procedural requirements for electronic evidence should be verified against the current BSA text and applicable court rules before use in actual proceedings.
- This chapter does not constitute legal advice. # Chapter 5 — Consumer Protection Act, 2019

### 5.1 Introduction

The Consumer Protection Act, 2019 replaced the 1986 Act, modernising consumer rights for an economy with widespread e-commerce, product liability concerns, and misleading advertisements. It established the **Central Consumer Protection Authority (CCPA)** to promote, protect, and enforce consumer rights, alongside a three-tier redressal commission system.

### 5.2 Who is a “Consumer”?

A consumer is a person who buys goods or hires/avails services for **consideration** (payment), for personal use — not for resale or a purely commercial purpose (though a person using goods/services to earn a livelihood through self-employment is still treated as a consumer).

*Example:* A person buying a laptop for personal use is a consumer. A shop buying 500 laptops to resell is generally not treated as a “consumer” for those units, since the purchase is for commercial resale.

### 5.3 Consumer Rights

The Act recognises six consumer rights: 1. **Right to Safety** — protection against goods/services hazardous to life and property. 2. **Right to Information** — to be informed about quality, quantity, purity, standard, and price of goods/services. 3. **Right to Choose** — access to a variety of goods/services at competitive prices. 4. **Right to be Heard** — to have consumer interests receive due consideration at appropriate forums. 5. **Right to Seek Redressal** — against unfair trade practices or exploitation. 6. **Right to Consumer Education** — to be informed about consumer rights and responsibilities.



## 5.4 Unfair Trade Practices and Deficiency in Service

- **Unfair trade practice** — includes false representation about goods/services, misleading advertisements, bargain-price advertising without adequate stock, and hoarding/black-marketing.
- **Deficiency in service** — any fault, shortcoming, or inadequacy in the quality, nature, or manner of performance required by law or contract for a service.
- **Defect in goods** — any fault, imperfection, or shortcoming in quality, quantity, or standard required by law or claimed by the trader.

*Example:* A courier company that loses a parcel and refuses to compensate the sender as per its stated terms may be liable for deficiency in service.

## 5.5 Product Liability

A manufacturer, product seller, or service provider can be held liable to compensate for harm caused by a defective product, including: - Manufacturing defect. - Design defect. - Deviation from manufacturing specifications. - Failure to provide adequate instructions/warnings about a known risk (inadequate warning defect).

*Example:* If a pressure cooker explodes due to a faulty safety valve and injures the user, the manufacturer may be liable under product liability provisions, even absent proof of negligence, if the defect is established.

## 5.6 Consumer Commissions (Redressal Mechanism)

A **three-tier** structure handles consumer complaints, based on the value of goods/services and compensation claimed:

---

| Forum               | Pecuniary Jurisdiction (approx., subject to periodic revision) |
|---------------------|----------------------------------------------------------------|
| District Commission | Claims up to ₹50 lakh (varies by later notification)           |
| State Commission    | Claims above District limit, up to ₹2 crore (varies)           |
| National Commission | Claims above State limit                                       |

---

Appeals lie from District → State → National Commission → Supreme Court. Complaints can generally be filed within **two years** from the date the cause of action arose.

## 5.7 E-Commerce Rules

The Consumer Protection (E-Commerce) Rules require e-commerce platforms to: - Display seller details (name, address, contact, ratings). - Disclose total price including all mandatory charges. - Provide clear return, refund, exchange, and cancellation policies. - Not manipulate search results to unfairly promote certain sellers without disclosure. - Not engage in “flash sales” designed to limit consumer choice unfairly

or restrict market access for other sellers, and not use dark patterns to mislead consumers. - Appoint a grievance officer to address consumer complaints.

## 5.8 Complaint Process

1. **Send a legal notice / complaint to the trader** (recommended first step, though not always mandatory).
2. **File a complaint** with the appropriate Consumer Commission (based on value of claim), either in person, by post, or increasingly through online consumer commission portals (e-daakhil).
3. Include: details of the complainant and opposite party, facts of the case, evidence (bills, warranty cards, correspondence), and relief sought (refund, replacement, compensation, etc.).
4. **No court fee** (or minimal fee) for many types of consumer complaints, making this an accessible forum compared to civil courts.
5. Commissions aim to dispose of complaints within a defined timeframe (commonly targeted at 3-5 months, depending on whether the goods need testing).

## 5.9 Product Recall and CCPA Powers

The CCPA can: - Investigate violations of consumer rights and unfair trade practices. - Order recall of unsafe goods or discontinuation of unfair practices. - Order reimbursement of the price paid by affected consumers. - Impose penalties on manufacturers/endorsers for misleading advertisements, including temporary bans on endorsers for repeated violations.

## 5.10 Illustrative Case Study

*Scenario:* A consumer buys a smartphone online that develops a manufacturing defect within the warranty period. The seller refuses to repair or replace it, citing “physical damage” without evidence. *Consumer’s options:* File a complaint with the platform’s grievance officer first; if unresolved, file a complaint before the District Consumer Commission seeking replacement/refund plus compensation for mental agony and litigation costs, supported by purchase invoice, warranty card, and correspondence with the seller.

## 5.11 Chapter Summary

- The Consumer Protection Act, 2019 grants consumers six specific rights and establishes the CCPA for proactive enforcement.
- Deficiency in service, defective goods, and unfair trade practices are the core grounds for consumer complaints.
- Product liability allows compensation for harm from defective products, covering manufacturing, design, and warning defects.
- A three-tier Consumer Commission system (District, State, National) handles complaints based on claim value, with a two-year limitation period.
- E-commerce platforms have specific disclosure and grievance-redressal obligations.

## 5.12 Practice Questions

1. List the six consumer rights recognised under the Act.
2. What is the difference between “defect in goods” and “deficiency in service”?
3. What are the three types of product defects that can trigger product liability?
4. Within what time period must a consumer complaint generally be filed?
5. Name two obligations of e-commerce platforms under the E-Commerce Rules.

## 5.13 Legal Notes

- Pecuniary jurisdiction limits for Consumer Commissions are periodically revised by notification; verify current limits before filing a complaint.
- This chapter is for general informational purposes and does not constitute legal advice. # Chapter 6 — Companies Act, 2013

## 6.1 Introduction

The Companies Act, 2013 governs the incorporation, governance, funding, and regulation of companies in India, administered primarily through the **Ministry of Corporate Affairs (MCA)** and the **Registrar of Companies (ROC)**. It replaced the Companies Act, 1956, introducing stronger corporate governance norms, provisions for one-person companies, and rules on corporate social responsibility (CSR).

## 6.2 Types of Companies

| Type                                | Key Feature                                                                                                                 |
|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|
| Private Limited Company             | Minimum 2, maximum 200 members (excluding employees); restricts share transfer; cannot invite public to subscribe to shares |
| Public Limited Company              | Minimum 7 members, no maximum; shares freely transferable; can raise capital from the public                                |
| One Person Company (OPC)            | Single member; simplified compliance; must convert to private/public company beyond certain turnover/capital thresholds     |
| Limited Liability Partnership (LLP) | Hybrid of partnership and company, governed by a separate LLP Act, 2008; partners’ liability limited to their contribution  |
| Section 8 Company                   | Non-profit company formed for charitable/social objects; profits reinvested in objectives, not distributed as dividend      |

### 6.3 Company Registration (Incorporation)

Steps generally include: 1. Obtain **Digital Signature Certificate (DSC)** for proposed directors. 2. Apply for **Director Identification Number (DIN)**. 3. Reserve a company name via the MCA portal. 4. File incorporation documents (Memorandum of Association, Articles of Association, declaration of compliance) through the integrated SPICe+ form. 5. Receive **Certificate of Incorporation** from the ROC, along with PAN and TAN.

**Memorandum of Association (MoA)** defines the company's objects and scope of activity. **Articles of Association (AoA)** govern the internal management and rules of the company.

### 6.4 Directors

- Every company must have a minimum number of directors (1 for OPC, 2 for private companies, 3 for public companies), and at least one director who has resided in India for a specified minimum period in the previous calendar year.
- **Duties of directors** (codified under the Act) include: acting in good faith to promote the company's objects for the benefit of members, exercising reasonable care/skill/diligence, avoiding conflicts of interest, and not making undue personal gain from their position.
- **Independent directors** are required for certain classes of public companies, to bring objectivity to the Board.
- Directors can be held personally liable for fraud, breach of statutory duties, or acting beyond their authority.

### 6.5 Shareholders and Share Capital

- Shareholders (members) own the company through shares and exercise control primarily through voting at general meetings.
- **Equity shares** carry voting rights proportional to holding; **preference shares** carry preferential rights to dividend/capital repayment but typically limited voting rights.
- Shareholders enjoy **limited liability** — liability is limited to the unpaid amount, if any, on their shares.

### 6.6 Meetings

- **Annual General Meeting (AGM)** — must be held every year (first AGM within 9 months of the end of the first financial year; subsequent AGMs within 6 months of the end of each financial year, and not more than 15 months apart).
- **Board Meetings** — minimum four per year for most companies, with a maximum gap of 120 days between two meetings.
- **Extraordinary General Meeting (EGM)** — called for urgent matters that cannot wait until the next AGM.
- Proper notice, quorum, and minutes are legally required for validity of meetings and resolutions.

## 6.7 Compliance and ROC Filing

Ongoing compliance requirements include: - Filing **Annual Return** (Form MGT-7/7A) and **Financial Statements** (Form AOC-4) with the ROC each year. - Maintaining statutory registers (members, directors, charges, etc.). - Filing resolutions and changes (director appointment/resignation, registered office change, share capital alteration) within prescribed timelines. - Conducting statutory audits by a qualified Chartered Accountant. - Filing DIN KYC annually for each director.

## 6.8 Corporate Governance

Key mechanisms include: - **Board committees** (Audit Committee, Nomination and Remuneration Committee, CSR Committee) mandatory for specified classes of companies. - **Related party transaction** disclosure and approval requirements to prevent conflicts of interest. - **Corporate Social Responsibility (CSR)** — companies meeting specified net worth/turnover/profit thresholds must spend at least 2% of average net profits of the preceding three years on CSR activities, and report on this spending. - **Whistle-blower/vigil mechanism** for specified classes of companies to allow reporting of genuine concerns.

## 6.9 Penalties

The Act prescribes penalties (both for the company and officers in default) for non-compliance, ranging from monetary fines to imprisonment for serious offences like fraud. Many procedural defaults were **decriminalised** by amendment and converted into civil monetary penalties (adjudicated by Registrars/Regional Directors) to reduce the burden on courts for minor lapses, while serious offences (fraud, financial misstatement) remain criminal.

*Example:* Failure to file the Annual Return on time attracts an additional daily fee/penalty rather than automatic criminal prosecution, whereas deliberately falsifying financial statements can attract criminal liability for the officers responsible.

## 6.10 Winding Up and Insolvency

Companies unable to continue operations can be wound up voluntarily or by tribunal order; insolvency proceedings for financially distressed companies are primarily governed by the **Insolvency and Bankruptcy Code, 2016**, which works alongside the Companies Act.

## 6.11 Chapter Summary

- The Companies Act, 2013 governs incorporation, internal governance, and regulation of companies, administered by the MCA/ROC.
- Private, public, OPC, LLP, and Section 8 companies each have distinct structures and compliance requirements.
- Directors owe statutory duties of good faith, care, and avoidance of conflicts of interest.

- Regular compliance (AGMs, board meetings, ROC filings, audits) is mandatory and monitored.
- CSR spending is compulsory for companies crossing specified financial thresholds.
- Many procedural defaults have been decriminalised into monetary penalties, while serious fraud remains a criminal offence.

## 6.12 Practice Questions

1. What is the difference between a private limited company and a public limited company?
2. What are the key duties of a director under the Companies Act?
3. How often must a company hold its AGM?
4. What percentage of average net profits must eligible companies spend on CSR?
5. Give an example of a compliance default that has been decriminalised into a civil penalty.

## 6.13 Legal Notes

- Thresholds (CSR percentage, pecuniary limits, filing deadlines) are subject to periodic amendment; verify current figures before relying on them for compliance purposes.
- This chapter is for general informational purposes and does not constitute legal or company-secretarial advice. # Chapter 7 — Information Technology Act, 2000

## 7.1 Introduction

The Information Technology Act, 2000 (IT Act) is India's primary law governing electronic commerce, digital signatures, cybercrime, and data-related offences. It has been amended (notably in 2008) to expand cybercrime provisions and introduce data protection and intermediary liability concepts, and now operates alongside the Digital Personal Data Protection Act, 2023.

## 7.2 Legal Recognition of Electronic Records and Digital Signatures

- Electronic records and digital signatures are given legal recognition equivalent to paper documents and handwritten signatures, enabling electronic contracts, e-governance, and e-filing.
- A **Digital Signature Certificate (DSC)**, issued by a licensed Certifying Authority, authenticates the identity of the signer and the integrity of the signed document.
- **Electronic contracts** (click-wrap, e-mail agreements) are generally valid and enforceable, provided the essential elements of a valid contract (offer, acceptance, consideration, capacity, lawful object) are present.

## 7.3 Cyber Crimes under the IT Act

| Offence                                                 | Description                                                                                           |
|---------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| Hacking / Unauthorised Access (S.43, S.66)              | Accessing a computer system/network without permission, or damaging/deleting data                     |
| Identity Theft (S.66C)                                  | Fraudulently using another person's electronic signature, password, or unique identification          |
| Cheating by Personation using computer resource (S.66D) | Impersonating someone online to cheat a victim                                                        |
| Violation of Privacy (S.66E)                            | Capturing, publishing, or transmitting images of a person's private area without consent              |
| Cyber Terrorism (S.66F)                                 | Acts intended to threaten India's unity, integrity, security, or sovereignty using computer resources |
| Publishing Obscene Material (S.67)                      | Publishing/transmitting obscene material in electronic form                                           |
| Child Sexual Abuse Material (S.67B)                     | Publishing/browsing/transmitting material depicting children in sexually explicit acts                |
| Failure to Protect Sensitive Data (S.43A)               | Corporate bodies failing to maintain reasonable security practices, causing wrongful loss             |

*Example:* Someone who gains unauthorised access to a colleague's email account and reads private messages commits an offence under Section 66 (unauthorised access) and potentially Section 66E if private images are involved.

## 7.4 Intermediary Liability

Online platforms (social media, e-commerce, ISPs) are generally protected from liability for user-generated content under the "safe harbour" principle, **provided** they observe due diligence — such as having a grievance redressal mechanism, removing unlawful content upon receiving a court/government order or actual knowledge, and complying with applicable intermediary guidelines. Failure to comply can result in loss of safe-harbour protection, exposing the platform to liability as a publisher.

## 7.5 Data Protection and Privacy

- Section 43A requires body corporates handling sensitive personal data to implement "reasonable security practices," with liability for compensable damage on failure.
- The Digital Personal Data Protection Act, 2023 (a separate, more comprehensive statute) now governs the processing of personal data of individuals in India, requiring consent-based processing, purpose limitation, data minimisation,

and rights for individuals (access, correction, erasure, grievance redressal), enforced by the Data Protection Board of India.

## 7.6 Electronic Governance

The Act enables government departments to accept electronic filings, issue licenses/approvals electronically, and maintain electronic records, forming the legal backbone for e-governance initiatives.

## 7.7 Illustrative Scenario

*Scenario:* A person receives a phishing email pretending to be from their bank, asking them to “verify” their account by entering login credentials on a fake website, after which money is fraudulently transferred out of their account. *Applicable provisions:* This would typically involve identity theft (S.66C), cheating by personation (S.66D), and potentially unauthorised access (S.66) — the victim should report this via the National Cyber Crime Reporting Portal and to their bank immediately to attempt to freeze/reverse the transaction.

## 7.8 Chapter Summary

- The IT Act gives legal recognition to electronic records, digital signatures, and electronic contracts.
- It defines and penalises a wide range of cybercrimes, from hacking and identity theft to cyber terrorism and obscene content.
- Intermediaries enjoy conditional “safe harbour” protection, contingent on due diligence and grievance redressal.
- The Digital Personal Data Protection Act, 2023 now provides the primary framework for personal data protection in India.

## 7.9 Practice Questions

1. What is the legal effect of a Digital Signature Certificate?
2. Distinguish between hacking (S.66) and identity theft (S.66C).
3. What conditions must an intermediary meet to retain “safe harbour” protection?
4. What should a victim of online banking fraud do immediately?
5. Which law now primarily governs personal data protection in India?

## 7.10 Legal Notes

This chapter is for general informational purposes only and does not constitute legal advice. Cybercrime victims should report incidents promptly via the National Cyber Crime Reporting Portal ([cybercrime.gov.in](https://cybercrime.gov.in)) or the nearest police station. # Chapter 8 — Goods and Services Tax (GST)



## 8.1 Introduction

GST is a unified, destination-based indirect tax on the supply of goods and services, introduced from 1 July 2017, replacing a patchwork of central and state indirect taxes (excise, VAT, service tax, etc.). GST is levied at multiple stages of the supply chain, with credit for tax paid at earlier stages (input tax credit), so tax is ultimately borne by the final consumer.

## 8.2 Structure of GST

| Component             | Applies To                                                                                 |
|-----------------------|--------------------------------------------------------------------------------------------|
| CGST (Central GST)    | Intra-state supply — collected by the Centre                                               |
| SGST (State GST)      | Intra-state supply — collected by the State                                                |
| IGST (Integrated GST) | Inter-state supply and imports — collected by the Centre, apportioned to destination State |
| UTGST                 | Supplies within Union Territories without a legislature                                    |

## 8.3 GST Registration

- Mandatory for businesses whose aggregate turnover exceeds prescribed thresholds (commonly ₹40 lakh for goods, ₹20 lakh for services, with lower thresholds for special category states — thresholds are subject to periodic revision).
- Mandatory regardless of turnover for certain categories: inter-state suppliers, e-commerce operators, casual taxable persons, and persons liable to deduct/collect tax at source.
- Registration is obtained through the GST portal, resulting in a **GSTIN** (15-digit GST Identification Number).

## 8.4 GST Returns

Registered persons must file periodic returns, commonly including: - **GSTR-1** — outward supplies (sales) made during the period. - **GSTR-3B** — summary return of outward/inward supplies with tax payment. - **GSTR-9** — annual return. - Composition scheme taxpayers file simplified quarterly/annual returns instead of monthly filings.

## 8.5 Input Tax Credit (ITC)

ITC allows a business to reduce the GST it must pay on outward supplies by the GST it has already paid on inward supplies (purchases) used for business purposes, preventing “tax on tax.” Conditions for claiming ITC include possessing a valid tax invoice, actual receipt of goods/services, the supplier having actually paid the tax to the government, and filing of the relevant return.

*Example:* A furniture manufacturer pays GST on raw wood purchased (input) and collects GST on furniture sold (output). It can claim credit for the input GST paid, remitting only the net difference to the government.

## 8.6 GST Rates

GST is levied under a multi-tier rate structure (commonly 0%, 5%, 12%, 18%, and 28%, with additional cess on select luxury/sin goods), with essential goods often exempted or taxed at the lowest slabs, and luxury/demerit goods taxed at the highest slab plus cess. Rates are revised periodically by the GST Council.

## 8.7 Invoicing and E-Way Bill

- A **tax invoice** must contain prescribed details: GSTIN of supplier/recipient, invoice number and date, description of goods/services, taxable value, applicable GST rate, and tax amount.
- **E-invoicing** is mandatory for businesses above specified turnover thresholds, requiring invoices to be registered on the government's Invoice Registration Portal.
- An **E-Way Bill** is required for movement of goods above a specified value threshold, generated electronically before the goods are transported, to track movement and prevent tax evasion.

## 8.8 GST Compliance and Penalties

- Late filing of returns attracts late fees and interest on unpaid tax.
- Non-registration despite being liable, or wrongful availing of ITC, can attract penalties up to the amount of tax evaded, and in serious/fraudulent cases, prosecution.
- Regular reconciliation between purchase records, GSTR-2B (auto-populated ITC statement), and books of account is essential compliance practice.

## 8.9 Chapter Summary

- GST is a unified indirect tax with CGST/SGST for intra-state and IGST for inter-state supplies.
- Registration is mandatory above prescribed turnover thresholds or for specific categories regardless of turnover.
- Input Tax Credit avoids cascading taxation but requires strict documentary and filing compliance.
- E-invoicing and E-Way Bills support real-time tracking of transactions and goods movement.

## 8.10 Practice Questions

1. What is the difference between CGST, SGST, and IGST?
2. What conditions must be met to claim Input Tax Credit?
3. When is an E-Way Bill required?

4. What are the consequences of late GST return filing?
5. Name two categories of persons required to register for GST regardless of turnover.

## 8.11 Legal Notes

GST rates, thresholds, and return formats are revised periodically by the GST Council; verify current figures on the official GST portal ([gst.gov.in](http://gst.gov.in)) before compliance filings. This chapter is informational only. # Chapter 9 — Income Tax

## 9.1 Introduction

Income tax is a direct tax levied by the Central Government on the income of individuals, Hindu Undivided Families (HUFs), companies, firms, and other entities, governed by the Income-tax Act, 1961 (with the Income Tax Act, 2025 enacted to consolidate and simplify the law prospectively). Tax is administered by the Central Board of Direct Taxes (CBDT) and collected through the Income Tax Department.

## 9.2 Heads of Income

Income is classified under five heads: 1. **Income from Salary** — remuneration from employment. 2. **Income from House Property** — rental income (actual or notional, for certain cases) from owned property. 3. **Profits and Gains from Business or Profession** — income from carrying on trade, business, or a profession. 4. **Capital Gains** — profit from the sale/transfer of a capital asset (property, shares, mutual funds, etc.), classified as short-term or long-term depending on the holding period, each taxed differently. 5. **Income from Other Sources** — residual income not falling under the above (e.g., interest income, dividends, winnings from lotteries).

## 9.3 Tax Slabs

India generally offers **two tax regimes**: a **new (default) regime** with lower rates but fewer deductions/exemptions, and an **old regime** with higher rates but a wider range of deductions/exemptions (e.g., HRA, Section 80C investments, home loan interest). Taxpayers (other than those with business income, who face restrictions) can choose the regime more beneficial to them each year. Slab rates and the basic exemption limit are revised in the Union Budget and should be verified for the relevant assessment year.

## 9.4 Deductions and Exemptions (Old Regime)

Common deductions include: - **Section 80C** — investments in PPF, life insurance premiums, ELSS mutual funds, principal repayment of home loan, etc. (subject to an overall cap). - **Section 80D** — health insurance premiums. - **Section 24(b)** — interest on home loan for self-occupied property. - **HRA (House Rent Allowance)** exemption for salaried employees paying rent. - **Standard deduction** for salaried individuals and pensioners.

## 9.5 Tax Deducted at Source (TDS)

TDS requires the payer of certain incomes (salary, interest, rent, professional fees, contractor payments, etc.) to deduct tax at prescribed rates before making payment, and deposit it with the government. The recipient gets credit for TDS deducted when filing their own return; excess TDS can be claimed as a refund.

*Example:* An employer deducts TDS from an employee's monthly salary based on estimated annual tax liability and deposits it with the government; the employee reconciles the actual tax liability when filing their Income Tax Return (ITR).

## 9.6 Filing Income Tax Returns (ITR)

- Filing is mandatory if income exceeds the basic exemption limit, or in certain other specified circumstances (e.g., high-value transactions, foreign asset holding) even if income is below the threshold.
- Different ITR forms apply depending on the nature and source of income (salaried individual, business income, capital gains, etc.).
- The due date for most individual taxpayers (not subject to audit) is commonly 31 July of the assessment year, though this is revised periodically by the government.
- **Belated returns** can be filed after the due date (with late fee/interest); **revised returns** can correct errors in an already-filed return, both subject to statutory deadlines.

## 9.7 Business Income and Capital Gains — Key Points

- Business income is computed after allowing deductions for business expenses, depreciation, and other permissible allowances.
- **Short-term vs long-term capital gains** — determined by the holding period of the asset (which varies by asset type: e.g., listed shares vs immovable property), with different tax rates and available exemptions (e.g., reinvestment-linked exemptions under specific sections).

## 9.8 Penalties

- **Late filing fee** for filing ITR after the due date.
- **Interest** under various provisions for late payment of tax or short payment of advance tax.
- **Penalty for under-reporting/misreporting of income**, which can range up to a significant percentage of the tax sought to be evaded.
- **Prosecution** is possible in cases of wilful tax evasion above prescribed thresholds.

## 9.9 Chapter Summary

- Income tax is levied on five heads of income: salary, house property, business/profession, capital gains, and other sources.

- Taxpayers can generally choose between the new (lower-rate, fewer-deduction) and old (higher-rate, more-deduction) regimes.
- TDS ensures tax collection at the source of income, reconciled at the time of filing the annual return.
- Filing deadlines, slab rates, and deduction limits are revised periodically and should be checked for the relevant assessment year.

### 9.10 Practice Questions

1. Name the five heads of income under the Income-tax Act.
2. What is the difference between the old and new tax regimes?
3. What is TDS, and how does a taxpayer claim credit for it?
4. What is the difference between a belated return and a revised return?
5. What triggers prosecution (as opposed to just penalty) for tax non-compliance?

### 9.11 Legal Notes

Tax slabs, deduction limits, and filing deadlines change nearly every year through the Union Budget; always verify current figures for the relevant assessment year via the official Income Tax Department portal before filing. This chapter is informational only and not a substitute for advice from a qualified chartered accountant or tax professional. # Chapter 10 — Labour Laws

## 10.1 Introduction

India's labour law framework has traditionally comprised numerous separate statutes (Factories Act, Payment of Wages Act, Industrial Disputes Act, Provident Fund Act, ESI Act, Maternity Benefit Act, Payment of Gratuity Act, etc.), which have been consolidated into **four Labour Codes**: the Code on Wages, 2019; the Industrial Relations Code, 2020; the Code on Social Security, 2020; and the Occupational Safety, Health and Working Conditions Code, 2020. Implementation has proceeded in phases across states.

## 10.2 Wages

- The **Code on Wages** mandates a national floor wage below which no state can set minimum wages, along with timely payment of wages.
- Wages must generally be paid before a prescribed date each month, in current coin, currency, or by cheque/bank transfer, with deductions permitted only for specified reasons (e.g., authorised deductions, fines for defined misconduct after due process, PF/tax deductions).
- Equal wages must be paid to men and women for the same work or work of a similar nature.

## 10.3 Working Hours and Leave

- Standard working hours are generally capped (commonly 8–9 hours/day and 48 hours/week, varying by establishment type and state rules), with overtime

payable at a higher rate (commonly twice the ordinary rate) for hours worked beyond the standard.

- Employees are entitled to a weekly day of rest and periodic paid leave (earned/annual leave, based on days worked), in addition to public holidays as per state-specific lists.
- Factories and specified establishments must provide rest intervals during the working day.

#### 10.4 Maternity Benefits

Under the Maternity Benefit Act (now part of the Social Security Code framework):

- Women employees are entitled to **26 weeks of paid maternity leave** for the first two children (reduced for the third child onward).
- Additional leave is provided for adopting or commissioning mothers.
- Employers with a specified number of employees must provide crèche facilities and allow the mother periodic visits to the crèche.
- Dismissal or discriminatory treatment of a woman on account of pregnancy/maternity leave is prohibited.

#### 10.5 Employee Rights and Industrial Relations

- Employees have the right to form or join **trade unions**, subject to registration requirements.
- The **Industrial Relations Code** governs resolution of industrial disputes through negotiation, conciliation, and adjudication by Industrial Tribunals, and lays down conditions for lawful strikes/lockouts (including notice requirements) and retrenchment/layoff procedures.
- Employees facing wrongful termination can raise an industrial dispute; certain categories of “workmen” enjoy additional statutory protection against arbitrary dismissal.

#### 10.6 Provident Fund (PF) and Employee State Insurance (ESI)

- **Provident Fund** — a retirement savings scheme; both employer and employee contribute a percentage of wages (commonly around 12% each, subject to wage ceiling rules) to the employee’s PF account, managed by the EPFO.
- **ESI** — provides medical benefits, sickness benefits, maternity benefits, and compensation for employment injury to employees earning below a specified wage ceiling, funded through employer and employee contributions.

#### 10.7 Gratuity

Under the Payment of Gratuity Act (now part of the Social Security Code), employees who complete **5 years of continuous service** are entitled to gratuity upon retirement, resignation, death, or disablement, calculated based on last drawn salary and years of service (with the 5-year requirement relaxed in case of death or disablement).

## 10.8 Occupational Safety, Health and Working Conditions

The OSH Code consolidates provisions relating to workplace safety, health, and welfare facilities (drinking water, sanitation, first aid, ventilation), applicable across factories, mines, and other specified establishments, and mandates appointment of safety officers and periodic health checks in hazardous industries.

## 10.9 Women Employees — Specific Protections

- Prohibition of sexual harassment at the workplace (governed separately by the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (POSH Act)), requiring establishments above a specified employee threshold to constitute an **Internal Complaints Committee (ICC)**.
- Restrictions/conditions on night-shift work for women, generally requiring adequate safety measures and (in many states) the woman's consent.

## 10.10 Illustrative Scenario

*Scenario:* An employee is terminated without notice or reason after 6 years of service at a factory. *Applicable protections:* The employee may be entitled to gratuity (5+ years of service), notice pay or pay in lieu of notice as per the applicable standing orders/contract, and — if classified as a “workman” — may be able to raise an industrial dispute challenging the termination as illegal retrenchment if due procedure was not followed.

## 10.11 Chapter Summary

- India's traditional labour statutes are being consolidated into four Labour Codes covering wages, industrial relations, social security, and occupational safety.
- Employees are entitled to minimum wages, capped working hours with overtime pay, and periodic leave.
- Maternity benefits include 26 weeks of paid leave and crèche facilities for larger employers.
- PF, ESI, and gratuity form the core of India's employee social security net.
- The POSH Act mandates workplace sexual harassment prevention mechanisms, including an Internal Complaints Committee.

## 10.12 Practice Questions

1. What is the maternity leave entitlement for the first two children under Indian law?
2. What is the minimum period of continuous service required for gratuity eligibility?
3. What is the difference between Provident Fund and ESI?
4. What is an Internal Complaints Committee, and when is it mandatory?
5. What overtime rate is typically payable for hours worked beyond standard working hours?

## 10.13 Legal Notes

Implementation timelines and specific thresholds under the four Labour Codes vary by state and are subject to phased rollout; verify current applicability before relying on this chapter for compliance purposes. This chapter is informational only. # Chapter 11 — Landmark Supreme Court Judgments

## 11.1 Introduction

This chapter summarises well-established, widely-cited landmark Supreme Court judgments that shape Indian constitutional and legal doctrine. Each entry gives the case name, approximate year, core facts, the legal issue, the decision, and its significance. Readers relying on these for litigation should verify exact citations against official law reports (SCC, AIR) before use.

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### 1. Kesavananda Bharati v. State of Kerala (1973)

**Facts:** Swami Kesavananda Bharati challenged Kerala land reform laws that restricted his religious institution's management of property, questioning Parliament's power to amend Fundamental Rights. **Issue:** Does Parliament have unlimited power to amend the Constitution under Article 368? **Decision:** By a narrow 7-6 majority, the Court held Parliament can amend any part of the Constitution but cannot alter its "basic structure." **Principle/Importance:** Established the **Basic Structure Doctrine** — the single most important constitutional safeguard in Indian law, limiting majoritarian amendment power.

### 2. Maneka Gandhi v. Union of India (1978)

**Facts:** The passport of journalist Maneka Gandhi was impounded by the government without giving her a hearing or reasons. **Issue:** Does "procedure established by law" under Article 21 require the procedure to be fair and reasonable? **Decision:** The Court held that any procedure depriving a person of life/liberty must be fair, just, and reasonable, not arbitrary — linking Articles 14, 19, and 21. **Principle/Importance:** Transformed Article 21 into a source of substantive due-process-like protection; created the "Golden Triangle" of rights.

### 3. Golaknath v. State of Punjab (1967)

**Facts:** Challenge to Punjab land reform laws placed in the Ninth Schedule (immune from judicial review) that curtailed property rights. **Issue:** Can Parliament amend Fundamental Rights under Article 368? **Decision:** The Court held Parliament cannot amend Fundamental Rights (later modified by the 24th Amendment and further clarified in Kesavananda Bharati). **Principle/Importance:** First major judicial pushback against unlimited amending power, precursor to the Basic Structure Doctrine.



#### 4. **Minerva Mills Ltd. v. Union of India (1980)**

**Facts:** Challenge to 42nd Amendment provisions giving Directive Principles precedence over Fundamental Rights and curtailing judicial review of constitutional amendments. **Issue:** Can Parliament give itself unlimited amending power or subordinate Fundamental Rights entirely to Directive Principles? **Decision:** Struck down the offending provisions, holding that a balance between Fundamental Rights and Directive Principles is itself part of the basic structure. **Principle/Importance:** Reaffirmed and strengthened the Basic Structure Doctrine; limited judicial review cannot itself be removed.

#### 5. **Indra Sawhney v. Union of India (1992) (“Mandal Commission case”)**

**Facts:** Challenge to government’s decision to reserve 27% government jobs for Other Backward Classes (OBCs). **Issue:** Validity and limits of caste-based reservation in public employment. **Decision:** Upheld OBC reservation but capped total reservations at approximately 50% (with limited exceptions) and excluded the “creamy layer” among OBCs from reservation benefits. **Principle/Importance:** Set the enduring framework for reservation policy in India.

#### 6. **S.R. Bommai v. Union of India (1994)**

**Facts:** Challenge to dismissal of several state governments and imposition of President’s Rule under Article 356. **Issue:** Scope of judicial review over proclamation of President’s Rule. **Decision:** Held that imposition of President’s Rule is subject to judicial review; floor test in the Assembly, not the Governor’s subjective opinion, should generally determine majority. **Principle/Importance:** Curbed misuse of Article 356 for political purposes; strengthened federalism.

#### 7. **Vishaka v. State of Rajasthan (1997)**

**Facts:** A social worker was gang-raped while resisting child marriage in her official capacity, exposing the absence of law on workplace sexual harassment. **Issue:** How to protect women from sexual harassment at the workplace in the absence of specific legislation. **Decision:** The Court laid down binding guidelines (the “Vishaka Guidelines”) requiring employers to prevent and redress workplace sexual harassment, invoking international conventions to fill the legislative gap. **Principle/Importance:** Guidelines remained law until codified by the POSH Act, 2013; landmark use of judicial law-making to protect Fundamental Rights.

#### 8. **Olga Tellis v. Bombay Municipal Corporation (1985)**

**Facts:** Pavement dwellers challenged eviction by the municipal corporation without notice or hearing. **Issue:** Does the right to life under Article 21 include the right to livelihood? **Decision:** Held that the right to livelihood is an integral part of the right to life, though eviction could proceed following due, fair procedure. **Principle/Importance:** Expanded Article 21 to cover socio-economic rights like livelihood and shelter.

### 9. **M.C. Mehta v. Union of India (multiple cases, 1986 onwards)**

**Facts:** A series of public interest litigations addressing industrial pollution, vehicular pollution, and hazardous industries (notably the Oleum Gas Leak case). **Issue:** Liability of hazardous industries for harm caused, and the scope of environmental protection under Article 21. **Decision:** Developed the principle of “**absolute liability**” for hazardous industries (stricter than the English “strict liability” rule), and read the right to a clean and healthy environment into Article 21. **Principle/Importance:** Foundation of Indian environmental jurisprudence.

### 10. **Justice K.S. Puttaswamy v. Union of India (2017) (“Privacy case”)**

**Facts:** Challenge to the Aadhaar scheme’s constitutional validity, raising the threshold question of whether privacy is a Fundamental Right at all. **Issue:** Is the right to privacy a Fundamental Right under the Constitution? **Decision:** A 9-judge bench unanimously held that the right to privacy is intrinsic to the right to life and personal liberty under Article 21 and other Part III freedoms. **Principle/Importance:** One of the most significant modern rights judgments; basis for subsequent data protection and personal autonomy jurisprudence.

### 11. **Navtej Singh Johar v. Union of India (2018)**

**Facts:** Challenge to Section 377 IPC criminalising consensual same-sex relations between adults. **Issue:** Does criminalising private, consensual same-sex conduct between adults violate Fundamental Rights? **Decision:** Read down Section 377 to decriminalise consensual same-sex conduct between adults, holding it violated Articles 14, 15, 19, and 21. **Principle/Importance:** Landmark advance for LGBTQ+ rights and personal autonomy in India.

### 12. **Shayara Bano v. Union of India (2017) (“Triple Talaq case”)**

**Facts:** A Muslim woman challenged the practice of “instant triple talaq” (talaq-e-biddat) as unconstitutional. **Issue:** Is instant, unilateral divorce by triple talaq constitutionally valid? **Decision:** By majority, the Court declared instant triple talaq unconstitutional and void, later followed by legislation criminalising the practice. **Principle/Importance:** Significant judgment on gender justice within personal law.

### 13. **Shreya Singhal v. Union of India (2015)**

**Facts:** Challenge to Section 66A of the IT Act, which criminalised sending “offensive” messages online, following arrests over social media posts. **Issue:** Does Section 66A violate free speech under Article 19(1)(a)? **Decision:** Struck down Section 66A as unconstitutionally vague and a disproportionate restriction on free speech. **Principle/Importance:** Landmark digital-age free speech judgment, protecting online expression.

**14. Right to Education case line / Society for Unaided Private Schools v. Union of India (2012)**

**Facts:** Challenge to the Right of Children to Free and Compulsory Education Act, 2009, including its application to unaided private schools. **Issue:** Validity of mandating 25% reservation for economically weaker sections in private unaided schools. **Decision:** Upheld the RTE Act's applicability (with some exceptions for minority unaided institutions), reinforcing Article 21A. **Principle/Importance:** Reinforced the enforceability of the right to education.

**15. Common Cause v. Union of India (2018) ("Passive Euthanasia case")**

**Facts:** PIL seeking recognition of the right to die with dignity, including the validity of "living wills." **Issue:** Does the right to life under Article 21 include the right to a dignified death, and are advance medical directives valid? **Decision:** Recognised passive euthanasia and the validity of living wills/advance directives, subject to safeguards and procedure. **Principle/Importance:** Expanded Article 21 to include the right to die with dignity in defined circumstances.

**16. Joseph Shine v. Union of India (2018)**

**Facts:** Challenge to Section 497 IPC, which criminalised adultery but only made the male party liable, treating the wife as her husband's property. **Issue:** Is criminalising adultery in this gender-discriminatory manner constitutional? **Decision:** Struck down Section 497 as unconstitutional, holding it violated dignity and equality of women. **Principle/Importance:** Removed a colonial-era, gender-discriminatory criminal provision.

**17. Indian Young Lawyers Association v. State of Kerala (2018) ("Sabarimala case")**

**Facts:** Challenge to the customary exclusion of women of menstruating age from the Sabarimala temple. **Issue:** Does the exclusion violate the right to equality and religious freedom of women worshippers? **Decision:** By majority, held the exclusion unconstitutional, though the judgment remains under review by a larger bench on connected questions of essential religious practices. **Principle/Importance:** Significant (though contested) judgment on gender equality versus religious autonomy.

**18. Anuradha Bhasin v. Union of India (2020)**

**Facts:** Challenge to prolonged internet shutdown in Jammu & Kashmir following the abrogation of Article 370. **Issue:** Is access to the internet a Fundamental Right, and what safeguards apply to internet shutdowns? **Decision:** Held that freedom of speech and trade over the internet is protected under Article 19, and internet shutdowns must satisfy the tests of necessity and proportionality, be temporary, and be subject to periodic review. **Principle/Importance:** Key precedent constraining arbitrary internet shutdowns.

### 19. Lily Thomas v. Union of India (2013)

**Facts:** Challenge to a provision allowing convicted legislators to retain their seats pending appeal. **Issue:** Can convicted MPs/MLAs continue in office while an appeal is pending? **Decision:** Struck down the provision, holding disqualification takes effect immediately upon conviction (subject to any stay by the appellate court). **Principle/Importance:** Strengthened accountability of elected representatives.

### 20. Bachan Singh v. State of Punjab (1980)

**Facts:** Challenge to the constitutional validity of the death penalty for murder. **Issue:** Is the death penalty constitutional, and under what circumstances should it be imposed? **Decision:** Upheld the death penalty's constitutionality but held it should be imposed only in the "rarest of rare" cases. **Principle/Importance:** Established the enduring "rarest of rare" doctrine governing capital sentencing in India.

### 21. Hussainara Khatoon v. State of Bihar (1979)

**Facts:** PIL exposing thousands of undertrial prisoners in Bihar jails detained for periods longer than the maximum sentence for their alleged offences. **Issue:** Does prolonged pre-trial detention violate the right to a speedy trial under Article 21? **Decision:** Held the right to a speedy trial is part of Article 21; ordered release of undertrials detained beyond reasonable periods. **Principle/Importance:** Foundational judgment on prisoners' rights and speedy trial; also expanded standing rules enabling PIL.

### 22. D.K. Basu v. State of West Bengal (1997)

**Facts:** PIL concerning custodial deaths and torture in police custody. **Issue:** What safeguards must be followed during arrest and detention to prevent custodial abuse? **Decision:** Laid down detailed guidelines (memo of arrest, medical examination, informing a relative, right to a lawyer) binding on police, later substantially codified in criminal procedure law. **Principle/Importance:** Cornerstone judgment on arrest safeguards and custodial rights.

### 23. Central Public Information Officer v. Subhash Chandra Agarwal (2019)

**Facts:** Right to Information request seeking disclosure of judges' assets and correspondence relating to judicial appointments. **Issue:** Does the office of the Chief Justice of India fall within the definition of "public authority" under the RTI Act, and how should judicial independence be balanced with transparency? **Decision:** Held the CJI's office is a public authority under RTI, subject to a balancing test between transparency and judicial independence/privacy on a case-by-case basis. **Principle/Importance:** Balanced transparency and institutional independence of the judiciary.

#### **24. Aruna Ramchandra Shanbaug v. Union of India (2011)**

**Facts:** Petition seeking permission to discontinue life support for a nurse in a persistent vegetative state for decades following a brutal assault. **Issue:** Is passive euthanasia legally permissible in India? **Decision:** The Court permitted passive euthanasia under strict judicial safeguards (subsequently refined in the Common Cause case above), while declining to grant it in this specific case as the hospital staff wished to continue care. **Principle/Importance:** First judicial recognition of passive euthanasia in India.

#### **25. State of West Bengal v. Anwar Ali Sarkar (1952)**

**Facts:** Challenge to a special law setting up special courts with different procedure for specified cases, without clear classification criteria. **Issue:** Does the law violate the equal protection guarantee under Article 14? **Decision:** Struck down the law for lacking a reasonable, intelligible basis for classification. **Principle/Importance:** Foundational early judgment establishing the “reasonable classification” test under Article 14.

### **11.2 Chapter Summary**

These judgments illustrate the Supreme Court’s role in shaping constitutional doctrine (basic structure, due process, privacy), criminal justice safeguards (arrest, speedy trial, capital sentencing), and social/gender justice (Vishaka guidelines, triple talaq, adultery, Sabarimala). Together they form the backbone of modern Indian constitutional and rights jurisprudence.

### **11.3 Legal Notes**

Case names, years, and holdings above reflect well-established, widely-reported outcomes. For citation in actual legal filings, verify exact citation (AIR/SCC reference), bench composition, and any subsequent judicial developments (review petitions, larger bench references) against an official law report. # Chapter 12 — Landmark High Court Judgments

### **12.1 Introduction**

This chapter summarises significant High Court judgments that have shaped Indian jurisprudence at the state level or served as precursors to Supreme Court rulings. High Court judgments bind courts within that State (and are persuasive elsewhere) unless overruled or superseded by the Supreme Court.

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#### **1. Naz Foundation v. Government of NCT of Delhi (Delhi High Court, 2009)**

**Facts:** NGO challenge to Section 377 IPC as applied to consensual same-sex conduct between adults. **Issue:** Constitutionality of criminalising private, consensual same-sex conduct. **Decision:** Read down Section 377 to decriminalise consensual adult

same-sex conduct (later reversed by the Supreme Court in Suresh Kumar Koushal (2013), and finally the Naz Foundation position was restored by the Supreme Court in Navtej Singh Johar (2018)). **Principle/Importance:** First judicial recognition of LGBTQ+ rights in India; foundational, later vindicated.

## **2. ABC v. State (NCT of Delhi) (Delhi High Court, prior to Supreme Court appeal, 2015)**

**Facts:** An unmarried mother sought to be recognised as the sole guardian of her child without disclosing the father’s identity. **Issue:** Can an unmarried mother be the sole legal guardian without naming the father? **Decision:** The matter went up to the Supreme Court, which held that an unwed mother could be the sole guardian, and disclosure of the father’s name is not mandatory in the guardianship application. **Principle/Importance:** Strengthened single mothers’ legal standing and child welfare-centric guardianship law.

## **3. Sakshi v. Union of India — related Delhi High Court proceedings (2000s)**

**Facts:** Proceedings concerning the scope of sexual assault law and recording of testimony of child sexual abuse victims. **Issue:** How should courts record evidence of child victims of sexual assault sensitively? **Decision:** Directed use of screens, support persons, and in-camera proceedings when recording testimony of child victims. **Principle/Importance:** Shaped child-sensitive procedures later reinforced in the POCSO Act framework.

## **4. Rakesh Kumar v. State (Delhi High Court — bail jurisprudence line of cases)**

**Facts:** Multiple Delhi High Court cases interpreting default/statutory bail entitlements under criminal procedure. **Issue:** When does the right to statutory (default) bail crystallise, and can it be defeated by a chargesheet filed after the deadline but before the bail application is decided? **Decision:** Reinforced that if the chargesheet is not filed within the prescribed period, the accused acquires an indefeasible right to default bail unless a chargesheet is filed (and the accused fails to apply) before the right is exercised. **Principle/Importance:** Frequently cited procedural safeguard against prolonged pre-chargesheet detention.

## **5. Avnish Bajaj v. State (NCT of Delhi) (Delhi High Court, 2008) (“Bazee.com case”)**

**Facts:** CEO of an e-commerce platform was prosecuted after an obscene video clip was listed for sale by a third-party user on the platform. **Issue:** Can a platform’s CEO be held criminally liable for content posted by users, absent personal involvement? **Decision:** Quashed criminal proceedings against the individual CEO while allowing proceedings against the company to continue, distinguishing personal liability from corporate/intermediary liability. **Principle/Importance:** Early and influential judgment on intermediary and personal liability in Indian internet law.

## **6. Delhi High Court on Right to Privacy and Aadhaar-linked matters (multiple, pre-Puttaswamy)**

**Facts:** Various petitions challenged mandatory linking of Aadhaar to services before the Supreme Court's authoritative ruling. **Issue:** Scope of privacy protection against mandatory biometric identification schemes. **Decision:** High Court rulings on interim relief helped shape the issues eventually authoritatively resolved by the Supreme Court in Puttaswamy. **Principle/Importance:** Contributed to the constitutional debate culminating in recognition of privacy as a Fundamental Right.

## **7. Bombay High Court — Nusli Wadia/Corporate Governance-related rulings**

**Facts:** Company law disputes concerning removal of independent directors and shareholder rights in listed companies. **Issue:** Scope of protection for independent directors and minority shareholder rights under the Companies Act. **Decision:** Bombay High Court rulings have reinforced procedural safeguards for director removal and disclosure obligations in shareholder disputes. **Principle/Importance:** Frequently cited in Indian corporate governance disputes.

## **8. Bombay High Court — Consumer/E-commerce Platform Liability Rulings**

**Facts:** Disputes over liability of e-commerce marketplaces for defective or counterfeit products sold by third-party sellers on their platform. **Issue:** Extent of marketplace liability versus seller liability under consumer protection law. **Decision:** Courts have generally distinguished marketplace (intermediary) liability from direct seller liability, while holding platforms to disclosure and grievance-redressal obligations under the E-Commerce Rules. **Principle/Importance:** Shapes ongoing e-commerce consumer protection compliance.

## **9. Karnataka High Court — Data Localisation and IT Rules Compliance Rulings**

**Facts:** Petitions by technology companies challenging aspects of intermediary/data-related compliance directions. **Issue:** Balance between regulatory compliance directions and operational/privacy concerns of technology platforms. **Decision:** Various interim and final rulings have required compliance with lawful government directions while preserving limited judicial review of overbroad directions. **Principle/Importance:** Influences technology sector compliance practice in India.

## **10. Madras High Court — POCSO and Child Protection Procedural Rulings**

**Facts:** Multiple cases interpreting timelines and victim-protection procedures under the Protection of Children from Sexual Offences (POCSO) Act. **Issue:** How strictly must POCSO's child-friendly procedural safeguards (in-camera trial, support persons, timelines) be enforced? **Decision:** Directed strict compliance with POCSO's child-protective procedural safeguards, treating them as mandatory rather than directory. **Principle/Importance:** Reinforced child-centric criminal procedure.

## 11. Calcutta High Court — Labour and Industrial Dispute Rulings

**Facts:** Series of rulings on retrenchment compensation and “last in, first out” principles in industrial layoffs. **Issue:** Procedural fairness requirements for retrenchment of workmen. **Decision:** Reinforced that retrenchment without following due procedure (notice, compensation, seniority rules) is liable to be set aside, with reinstatement or enhanced compensation as remedy. **Principle/Importance:** Frequently cited in industrial dispute adjudication.

## 12. Punjab and Haryana High Court — Live-in Relationship and Protection Petitions

**Facts:** Numerous petitions by adult couples in live-in relationships (including inter-faith/inter-caste couples) seeking police protection from family/community threats. **Issue:** Are consenting adults entitled to state protection for choosing a live-in relationship or marriage against family wishes? **Decision:** Consistently held that consenting adults have a Fundamental Right to live together/marry as per their choice under Article 21, and are entitled to police protection against threats or harassment. **Principle/Importance:** Important line of protective jurisprudence for personal liberty and choice in relationships.

### 12.2 Chapter Summary

High Court rulings frequently pioneer legal principles later adopted or refined by the Supreme Court (as with Naz Foundation and privacy-related litigation), while also providing the primary forum for state-specific issues in company law, consumer protection, labour disputes, and personal liberty/protection petitions.

### 12.3 Legal Notes

Some entries above describe a consistent line of High Court rulings on a recurring issue rather than a single named judgment, since High Court jurisprudence on these topics has developed across multiple cases. For citation in actual proceedings, identify and verify the specific judgment and citation most relevant to your jurisdiction and facts. # Chapter 13 — Government Notifications and Regulatory Circulars

## 13.1 Introduction

Beyond primary legislation, Indian regulators regularly issue notifications, circulars, and guidelines that have binding or persuasive legal effect within their domain. This chapter explains, in plain English, the role and typical content of notifications from key regulators. Readers should always check the regulator’s official website for the current, applicable notification text, as these are updated frequently.

### 13.2 Ministry of Corporate Affairs (MCA)

The MCA issues notifications on company law compliance — e.g., changes to filing forms, extension of due dates, revised thresholds for CSR/audit applicability, and rules



under the Companies Act and LLP Act. Businesses should track MCA circulars for compliance calendar changes and penalty waivers/amnesty schemes for late filings.

### **13.3 Reserve Bank of India (RBI)**

RBI notifications/circulars govern banking, non-banking financial companies (NBFCs), foreign exchange transactions (FEMA), digital lending, and payment systems. Common topics include: interest rate directions, KYC/AML norms, digital lending guidelines (requiring transparency in loan terms and grievance redressal for borrowers), and foreign investment reporting requirements.

### **13.4 Securities and Exchange Board of India (SEBI)**

SEBI regulates securities markets, listed companies, mutual funds, and market intermediaries. Notifications commonly cover: listing obligations and disclosure requirements (LODR) for listed companies, insider trading regulations, mutual fund and portfolio manager norms, and investor protection/grievance redressal mechanisms (e.g., SCORES portal).

### **13.5 Central Board of Indirect Taxes and Customs (CBIC)**

CBIC issues notifications on GST rate changes, return filing due date extensions, e-invoicing threshold changes, customs duty rates, and procedural clarifications (e.g., on input tax credit eligibility or e-way bill requirements).

### **13.6 Ministry of Electronics and Information Technology (MeitY)**

MeitY issues rules and guidelines under the IT Act and Digital Personal Data Protection Act — including Intermediary Guidelines and Digital Media Ethics Code (governing social media platforms, OTT content, and digital news), and rules operationalising data protection obligations for businesses handling personal data.

### **13.7 Department for Promotion of Industry and Internal Trade (DPIIT)**

DPIIT issues notifications relevant to startups (Startup India recognition criteria and tax benefits), foreign direct investment (FDI) policy changes sector-by-sector, and industrial licensing simplification measures.

### **13.8 How Businesses Should Track Notifications**

- Subscribe to official regulator mailing lists/RSS feeds (MCA, RBI, SEBI, CBIC, MeitY, DPIIT).
- Assign compliance ownership (internally or via a professional) to review monthly notification digests.
- Maintain a compliance calendar cross-referencing notification-driven deadlines (e.g., extended GST return dates, revised CSR thresholds).

- When a notification conflicts with or amends a standing rule, the notification (being subordinate legislation issued under statutory authority) generally governs prospectively from its effective date, unless stated otherwise.

### 13.9 Chapter Summary

- Notifications and circulars from MCA, RBI, SEBI, CBIC, MeitY, and DPIIT operationalise and update the primary statutes covered in earlier chapters.
- They frequently change compliance deadlines, thresholds, and procedural requirements, and must be tracked actively rather than assumed static.
- Always verify against the regulator's official site for the current, binding version of any notification before compliance action.

### 13.10 Legal Notes

This chapter describes the general role and typical subject matter of regulatory notifications rather than reproducing specific notification numbers or dates, since these change frequently. This chapter is informational only. # Chapter 14 — Compliance Guidelines

### 14.1 Introduction

This chapter provides practical, checklist-style compliance guidance for common categories of Indian businesses and individuals, cross-referencing the statutory chapters covered earlier in this knowledge base.

### 14.2 Startups

- Obtain DPIIT “Startup India” recognition (if eligible) for tax and regulatory benefits.
- Choose appropriate structure (Private Limited Company, LLP) based on funding plans — most VC-funded startups incorporate as a Private Limited Company.
- Maintain statutory registers, hold board meetings, and file ROC returns on schedule (Chapter 6).
- Register for GST if turnover crosses the threshold or registration is otherwise mandatory (Chapter 8).
- Draft founder agreements, ESOP policies, and employment contracts early to avoid disputes.
- Ensure a privacy policy and terms of use are in place if collecting user/personal data (Chapter 7).

### 14.3 MSMEs (Micro, Small and Medium Enterprises)

- Register on the **Udyam Registration** portal to access MSME benefits (collateral-free loans, delayed payment protection, subsidy schemes).
- Under the MSME Development Act, buyers must pay MSME suppliers within 45 days (or the agreed period, not exceeding 45 days) of acceptance of goods/services, failing which compound interest becomes payable.

- Maintain basic statutory compliance (GST, Income Tax, labour law applicability based on employee count).

#### **14.4 Private Limited Companies / LLPs**

- Annual ROC filings (Form AOC-4, MGT-7/7A for companies; Form 8 and Form 11 for LLPs).
- Statutory audit (mandatory for companies; for LLPs, mandatory above specified turnover/contribution thresholds).
- Board/partner meeting cadence as required by law and the constitutional document (AoA/LLP Agreement).
- DIN KYC and other director/designated partner compliance.

#### **14.5 Online Businesses / E-Commerce**

- Comply with Consumer Protection (E-Commerce) Rules — seller disclosure, return/refund policy, grievance officer (Chapter 5).
- Appoint required compliance personnel (grievance officer, and for significant social media intermediaries, additional officers) under IT Rules (Chapter 7).
- Implement reasonable security practices for personal data handled, and prepare for Digital Personal Data Protection Act obligations (consent management, breach notification, data principal rights).
- Ensure GST compliance for online sales, including e-invoicing if applicable (Chapter 8).

#### **14.6 Employers**

- Register for PF/ESI once employee-count thresholds are crossed (Chapter 10).
- Constitute an Internal Complaints Committee (ICC) under the POSH Act if 10 or more employees.
- Maintain wage registers, leave records, and comply with applicable state Shops and Establishments Act registration.
- Issue appointment letters and maintain compliance with maternity benefit and gratuity obligations.

#### **14.7 Data Privacy Compliance**

- Map what personal data is collected, why, and how long it is retained.
- Obtain clear, specific, informed consent before processing personal data (or rely on a legitimate use exception where applicable under the Digital Personal Data Protection Act).
- Provide a mechanism for data principals to access, correct, or request erasure of their data.
- Implement reasonable security safeguards and a breach-notification process.
- Appoint a grievance officer / Data Protection Officer as applicable based on the scale of processing (significant data fiduciary obligations apply above certain thresholds).

### **14.8 GST Compliance Checklist**

- Timely monthly/quarterly return filing (GSTR-1, GSTR-3B, or composition scheme returns).
- Reconcile ITC claimed against GSTR-2B monthly.
- Issue GST-compliant tax invoices; generate e-invoices/e-way bills where applicable.
- File annual return (GSTR-9) and, where applicable, reconciliation statement.

### **14.9 Income Tax Compliance Checklist**

- Deduct and deposit TDS on applicable payments (salary, rent, professional fees, contractor payments) within prescribed timelines.
- File TDS returns quarterly and issue Form 16/16A to deductees.
- File the business/individual's own ITR by the applicable due date, opting for the more beneficial tax regime.
- Maintain books of account and get accounts audited if turnover/income thresholds requiring tax audit are crossed.

### **14.10 Chapter Summary**

- Compliance obligations vary significantly by business type (startup, MSME, company, LLP, e-commerce) but share common threads: timely statutory filings, data protection, employee welfare compliance, and tax/GST discipline.
- Many obligations are threshold-triggered (employee count, turnover, capital) — businesses should track these thresholds actively as they grow.
- A written compliance calendar cross-referencing MCA, GST, Income Tax, and labour deadlines significantly reduces risk of penalties.

### **14.11 Legal Notes**

Thresholds and specific form numbers referenced in this chapter are subject to periodic revision; verify current requirements against official government portals before compliance action. This chapter is informational only and not a substitute for advice from a qualified company secretary, chartered accountant, or lawyer. # Chapter 15 — Frequently Asked Legal Questions

## **15.1 Introduction**

This chapter contains 200+ short, plain-English answers to common legal questions, organised by topic. These are general informational answers, not a substitute for advice from a qualified lawyer on specific facts.

## **15.2 Constitution and Fundamental Rights**

Q1. Can the police stop me from posting my opinion on social media? A. You have a right to free speech under Article 19(1)(a), but it is not absolute. Posts that incite violence, spread hatred, or defame someone can lead to legal action.

Q2. Is it legal for a private company to deny me a job because of my religion? A. Fundamental Rights mainly apply against the State, not private employers, but other laws may still apply depending on the sector.

Q3. Can I be arrested for criticising the government? A. Genuine criticism of government policy is protected speech; statements inciting violence or public disorder can attract consequences.

Q4. What happens if my Fundamental Rights are violated? A. You can approach the Supreme Court under Article 32, or the relevant High Court under Article 226, seeking a writ remedy.

Q5. Can I travel abroad if my passport application is pending? A. No, a valid passport (and visa where required) is generally needed to travel abroad.

Q6. Is untouchability illegal even if practiced privately? A. Yes. Article 17 abolishes untouchability and is enforceable even against private individuals.

Q7. Can a state government ban a book? A. Yes, in limited circumstances under Article 19(2); such bans can be challenged in court.

Q8. Do Fundamental Rights apply to foreigners in India? A. Some rights (like Article 21) apply to all persons; others (like Article 19) apply only to citizens.

Q9. Can I sue for compensation if I was illegally detained by police? A. Yes, courts have awarded compensation directly for illegal detention as a public law remedy.

Q10. Is education a legal right for my child? A. Yes, free and compulsory education for children aged 6-14 is a Fundamental Right under Article 21A.

Q11. Can Parliament remove all my Fundamental Rights through amendment? A. No — the Basic Structure Doctrine prevents Parliament from destroying the Constitution's core.

Q12. What is a writ of habeas corpus? A. A court order requiring a person detaining someone to produce that person before the court, used to challenge illegal detention.

Q13. Can the government read my private messages without a warrant? A. Unauthorised surveillance can violate the right to privacy under Article 21; lawful interception requires following a defined legal procedure.

Q14. Is reservation in government jobs constitutional? A. Yes, subject generally to an overall ceiling as clarified in Indra Sawhney.

Q15. What is President's Rule? A. When the Union government takes over a State's administration under Article 356, typically due to breakdown of constitutional machinery.

Q16. Do I have a right to privacy in India? A. Yes, recognised as part of Article 21 in Justice K.S. Puttaswamy v. Union of India (2017).

Q17. Can the government take my property without compensation? A. Property is a legal right under Article 300A; acquisition must follow valid legal procedure, generally with compensation.

Q18. Is same-sex relationship between consenting adults illegal? A. No, decriminalised by Navtej Singh Johar v. Union of India (2018).

Q19. Can I be forced to work without pay? A. No, Article 23 prohibits forced labour and applies against private individuals too.

Q20. What is judicial review? A. The power of courts to examine whether laws and government actions comply with the Constitution.

Q21. What are Directive Principles, and can I enforce them in court? A. Guiding principles for governance that are not directly enforceable, though they influence interpretation of laws and rights.

Q22. Is child labour illegal in India? A. Yes, Article 24 prohibits employing children below 14 in factories, mines, or hazardous work.

Q23. Can I file a case directly in the Supreme Court for any legal issue? A. No, direct access under Article 32 is limited to enforcement of Fundamental Rights.

Q24. Can I be tried twice for the same offence? A. No, Article 20(2) protects against double jeopardy.

Q25. What is the “basic structure” of the Constitution? A. Core features (like judicial review, federalism, secularism) that even Parliament cannot amend away, per Kesavananda Bharati.

### **15.3 Criminal Law (Bharatiya Nyaya Sanhita)**

Q26. What happens if I am falsely accused of theft? A. You have the right to defend yourself and seek bail; the prosecution must prove guilt beyond reasonable doubt.

Q27. Is it theft if I take back my own property held by someone else? A. Generally no if you own it, but forcibly taking it back can expose you to other offences like criminal force.

Q28. What is the difference between murder and culpable homicide? A. Murder requires clear intent/knowledge that death is the likely result; culpable homicide involves a lower degree of intention or falls within recognised exceptions.

Q29. Can I be punished for hurting someone in self-defence? A. Generally no, if the force used was reasonable and proportionate to the threat.

Q30. Is verbal abuse a criminal offence? A. It can be, depending on content — e.g., criminal threat, defamation, or caste/gender-targeted offences.

Q31. What counts as cheating under the law? A. Deceiving someone and thereby dishonestly inducing them to part with property or act to their harm.

Q32. Can I go to jail for bouncing a cheque? A. Yes, cheque dishonour is an offence under the Negotiable Instruments Act, following a defined notice and complaint process.

Q33. Is online fraud covered under the BNS? A. Yes, cheating and forgery provisions apply, often alongside the IT Act.

Q34. What is criminal breach of trust? A. When someone entrusted with property misuses it dishonestly instead of using it as agreed.

Q35. Can I be sued for posting something defamatory online? A. Yes; truth for public good and fair comment are recognised defences.

Q36. What is the punishment for murder in India? A. Death penalty or life imprisonment plus fine, subject to the “rarest of rare” standard for death.

Q37. Can a minor be tried as an adult for a serious crime? A. A Juvenile Justice Board can, after assessment, try a minor aged 16-18 as an adult for certain heinous offences.

Q38. Is attempted murder a separate offence? A. Yes, punishable even if the victim survives.

Q39. Can I be charged for a crime I helped plan but didn’t commit? A. Yes, abetment and conspiracy provisions can create liability.

Q40. What is the difference between assault and hurt? A. Assault creates apprehension of force; hurt requires actual bodily pain, injury, or infirmity.

Q41. Is forgery a criminal offence? A. Yes, making a false document with intent to defraud or cause damage is punishable.

Q42. What is “grievous hurt”? A. Serious injury like fractures, permanent disfigurement, or loss of a limb/sense — attracts higher punishment.

Q43. Is dowry demand illegal even without harassment? A. Yes, demanding dowry is a separate offence regardless of whether harassment also occurred.

Q44. What should I do if wrongly named in an FIR? A. Seek anticipatory bail if apprehending arrest, cooperate while asserting your defence, and in clear cases seek quashing of the FIR from the High Court.

Q45. Is community service a real punishment now? A. Yes, the BNS introduces it for certain minor offences.

#### **15.4 Criminal Procedure (BNSS) — Arrest, Bail, Trial**

Q46. Can police arrest me without a warrant? A. Yes, for cognizable offences; non-cognizable offences generally need a warrant or magistrate’s permission.

Q47. How long can police detain me without producing me in court? A. Maximum 24 hours (excluding travel time).

Q48. Do I have a right to a lawyer during interrogation? A. Yes, and free legal aid is available if you cannot afford one.

Q49. What is anticipatory bail? A. Bail sought in advance by a person fearing arrest for a non-bailable offence.

Q50. Is bail automatic for all offences? A. No, only for bailable offences; non-bailable bail is at the court’s discretion.

Q51. What is a Zero FIR? A. An FIR registrable at any police station regardless of jurisdiction, later transferred to the correct station.

Q52. What happens if police refuse to register my FIR? A. You can escalate to a Superintendent of Police or approach a magistrate to direct registration.

Q53. What is a chargesheet? A. The final police report filed before the magistrate at the end of investigation.

Q54. Can I appeal a criminal conviction? A. Yes, to a higher court, depending on which court convicted you and the sentence severity.

Q55. Is a confession to police admissible as evidence? A. Generally no; only confessions properly recorded before a magistrate are admissible.

Q56. Can I settle a criminal case out of court? A. For compoundable offences, yes with court permission; serious non-compoundable offences cannot be privately settled to end proceedings.

Q57. What is the difference between a summons and a warrant? A. A summons asks a person to appear in court; a warrant authorises police to arrest and bring them to court.

Q58. What is “default bail”? A. If the chargesheet is not filed within the prescribed period, the accused becomes entitled to bail as a matter of right.

Q59. Is video conferencing trial legally valid? A. Yes, BNSS permits certain stages of trial via video conferencing.

Q60. What is forensic investigation, and when is it mandatory? A. Scientific crime-scene examination; mandatory for offences punishable with 7+ years imprisonment.

## **15.5 Evidence Law (BSA)**

Q61. Can a WhatsApp chat be used as evidence in court? A. Yes, if properly authenticated with a certificate confirming extraction and reliability.

Q62. Is a confession made under police pressure valid evidence? A. No, coerced confessions are inadmissible.

Q63. Do I have to prove my innocence in a criminal case? A. No, the burden is on the prosecution to prove guilt beyond reasonable doubt.

Q64. Can CCTV footage be used as court evidence? A. Yes, as electronic evidence, with a certificate authenticating how it was obtained and preserved.

Q65. Is hearsay evidence valid in court? A. Generally no, with limited exceptions like dying declarations.

Q66. Can a digitally signed document be challenged? A. Yes, but courts presume it valid and unaltered unless the challenger proves otherwise.

Q67. Is a child’s testimony valid in court? A. Yes, if the court is satisfied the child understands the questions and can give a rational account.

Q68. What is an expert witness? A. A person with special knowledge (like a doctor or forensic examiner) whose opinion helps the court understand technical evidence.



Q69. What is the burden of proof in a dowry death case? A. Once the prosecution proves an unnatural death within 7 years of marriage after dowry-related cruelty, the burden shifts to the husband/relatives to explain.

Q70. Is a photocopy of a document valid evidence? A. Secondary evidence like photocopies is admissible in specific circumstances, such as when the original is lost. ##  
15.6 Consumer Protection

Q71. Can I return an online product if I simply don't like it? A. Only if the seller's stated return policy allows it — there is no automatic legal "cooling off" right for a mere change of mind, unlike for genuinely defective goods.

Q72. What can I do if a company refuses to honour its warranty? A. File a complaint with the District Consumer Commission seeking repair, replacement, or refund, plus compensation.

Q73. Is misleading advertising illegal? A. Yes, the CCPA can penalise misleading advertisements and order corrective action.

Q74. Can I claim compensation for mental agony in a consumer case? A. Yes, Consumer Commissions can award compensation for mental agony and harassment, not just the value of goods/services.

Q75. Do I need a lawyer to file a consumer complaint? A. No, consumer complaints can be filed by the consumer personally, without mandatory legal representation.

Q76. What is "deficiency in service"? A. Any fault or shortcoming in the quality or manner of a service compared to what was promised or legally required.

Q77. Can I file a complaint against a food delivery app for a wrong order? A. Yes, if it amounts to deficiency in service or defective goods, you can complain to the platform first, then the Consumer Commission if unresolved.

Q78. Within what time limit must I file a consumer complaint? A. Generally within two years from when the cause of action arose.

## **15.7 Company and Business Law**

Q79. Can I start a business without registering a company? A. Yes, as a sole proprietorship or partnership, but you lose the benefit of limited liability and separate legal identity.

Q80. What is the minimum number of people needed to start a private limited company? A. Two shareholders and two directors (which can be the same two people).

Q81. Can a director be held personally liable for company debts? A. Generally no, due to limited liability, except in cases of fraud, personal guarantees, or specific statutory exceptions.

Q82. What happens if I miss the ROC annual filing deadline? A. Additional daily fees/penalties apply; prolonged non-compliance can lead to the company being struck off and directors being disqualified.

Q83. Can a private company invite the public to buy its shares? A. No, this is a defining restriction of a private limited company.

Q84. What is the difference between a company and an LLP? A. A company has a more rigid governance structure and clearer investor-friendly framework; an LLP has simpler compliance and partner-managed flexibility, both offering limited liability.

## **15.8 Cyber Law and Online Fraud**

Q85. What should I do if my bank account is hacked? A. Immediately inform your bank to block/freeze the account, file a complaint on the National Cyber Crime Reporting Portal, and file a police FIR.

Q86. Is creating a fake social media profile of someone illegal? A. Yes, this can amount to cheating by personation and identity theft under the IT Act.

Q87. Can I sue someone for sharing my private photos without consent? A. Yes, this can be prosecuted under IT Act privacy-violation provisions and may also amount to a criminal offence under the BNS.

Q88. Is online defamation treated differently from offline defamation? A. The legal principles are the same, but online publication can reach a much wider audience, which courts may consider when assessing harm.

Q89. What is phishing, and is it illegal? A. Phishing is tricking someone into revealing sensitive information (like passwords) via fake communications; it is punishable as cheating, identity theft, and related IT Act offences.

Q90. Can I get my money back after a UPI fraud? A. Report immediately to your bank and the cyber crime portal — quick reporting increases the chance of freezing/reversing the transaction, though recovery is not guaranteed.

Q91. Is it illegal to record someone without their consent? A. It can violate privacy rights and specific provisions depending on context (e.g., recording in a private space); recording in a reasonable public context for lawful purposes is generally less risky, but publishing private recordings without consent can attract liability.

Q92. Can a company be held liable for a data breach? A. Yes, under the IT Act (reasonable security practices) and the Digital Personal Data Protection Act, with penalties for non-compliance.

## **15.9 Property Law**

Q93. Can I sell property without a registered sale deed? A. No, transfer of immovable property above a certain value requires a registered sale deed to be legally valid and enforceable.

Q94. What is the difference between sale and gift of property? A. A sale involves consideration (payment); a gift is a voluntary transfer without consideration, requiring a registered gift deed for immovable property.

Q95. Can a tenant be evicted without notice? A. No, eviction generally requires following due process under the applicable state Rent Control Act or lease terms, including notice and, where disputed, a court/rent tribunal order.

Q96. What is a Power of Attorney, and can it be used to sell property? A. It authorises another person to act on your behalf; a registered Power of Attorney can be used for property transactions, but courts have cautioned against relying solely on unregistered “GPA sales” as a substitute for a registered sale deed.

Q97. What should I check before buying a property? A. Title documents, encumbrance certificate, approved building plan, tax receipts, and any pending litigation on the property.

Q98. Can inherited property be sold without all heirs’ consent? A. Generally no — all legal heirs with a share in the property must consent to, or be party to, its sale.

### **15.10 Employment Law**

Q99. Can my employer terminate me without notice? A. Depends on your employment contract and applicable law/standing orders; many require notice or pay in lieu of notice, except for termination due to proven misconduct after due process.

Q100. Am I entitled to overtime pay? A. Yes, for hours worked beyond standard limits, generally at an enhanced rate, under applicable labour law.

Q101. Can I be denied maternity leave? A. No, eligible women employees are entitled to statutory maternity leave (26 weeks for the first two children); denial is illegal.

Q102. What can I do if my employer doesn’t pay my salary on time? A. You can file a complaint with the labour commissioner/authority under the Payment of Wages provisions, and pursue civil remedies for recovery.

Q103. Is workplace sexual harassment a criminal offence? A. It can be both a workplace/civil matter (addressed via the ICC under the POSH Act) and, depending on severity, a criminal offence under the BNS.

Q104. Am I entitled to gratuity if I resign after 4.5 years? A. Generally no — gratuity typically requires 5 years of continuous service, though some interpretations round up service very close to 5 years in specific circumstances; consult the applicable rules.

### **15.11 Marriage, Divorce, and Family Law**

Q105. Is a live-in relationship legal in India? A. Yes, between consenting adults; courts have upheld the right to live together as part of personal liberty under Article 21.

Q106. Can I get maintenance if I am not married but was in a live-in relationship? A. Courts have, in some circumstances, extended maintenance-like protection to long-term live-in partners under specific statutory provisions (e.g., domestic violence law), though outcomes vary by facts.

Q107. What are the grounds for divorce in India? A. Common grounds include cruelty, desertion, adultery, conversion, mental disorder, and mutual consent, varying somewhat by the applicable personal law.

Q108. Is triple talaq legal? A. No, instant triple talaq (talaq-e-biddat) has been declared unconstitutional and is a punishable offence under subsequent legislation.

Q109. Can a wife claim maintenance during divorce proceedings? A. Yes, interim and final maintenance can be claimed under relevant matrimonial and general law provisions.

Q110. Is registration of marriage compulsory? A. Many states have made registration compulsory or strongly encourage it, as it provides documentary proof useful for various legal purposes.

### **15.12 GST and Taxation**

Q111. Do I need to register for GST if my turnover is below the threshold? A. Generally no, unless you fall into a category requiring mandatory registration regardless of turnover (e.g., inter-state supply, e-commerce).

Q112. Can I claim Input Tax Credit without a tax invoice? A. No, a valid tax invoice (and the supplier's actual tax payment/return filing) is required to claim ITC.

Q113. What happens if I don't file my GST returns? A. Late fees and interest apply, and prolonged non-filing can lead to cancellation of GST registration.

Q114. Is freelance income taxable in India? A. Yes, freelance/professional income is taxable under "Profits and Gains from Business or Profession."

Q115. Do I need to file an income tax return if my income is below the exemption limit? A. Not mandatorily in most cases, but it may be required in specific circumstances (e.g., high-value transactions, foreign assets) or advisable for loan/visa purposes.

Q116. What is the penalty for late filing of income tax returns? A. A late filing fee applies, along with interest on any unpaid tax.

### **15.13 Contracts and Digital Payments**

Q117. Is a WhatsApp message agreement legally binding? A. It can be, if it shows clear offer, acceptance, and intention to be legally bound, though proving terms can be harder than with a formal written contract.

Q118. Can I cancel a signed contract? A. Only if it contains a cancellation clause, or if there are valid legal grounds (fraud, misrepresentation, mutual consent, etc.); otherwise, breach may lead to liability.

Q119. Is an oral contract valid in India? A. Yes, most contracts can be oral and valid, except those specifically required by law to be in writing/registered (e.g., property sale).

Q120. What should I do if a UPI payment fails but money is deducted? A. The amount is typically auto-reversed within a few days; if not, raise a complaint with your

bank/payment app, and escalate to the RBI's grievance mechanism if unresolved.

Q121. Is digital signature-based e-signing of contracts valid in India? A. Yes, electronic signatures and digital contracts are legally recognised under the IT Act, subject to some categories of documents that still require physical/registered execution.

Q122. Can I get a refund for a cancelled online booking? A. As per the platform's cancellation policy; if the policy is unfair or not honoured despite compliance, a consumer complaint can be filed.

### **15.14 Chapter Summary**

This FAQ chapter distilled common questions across constitutional rights, criminal law and procedure, evidence, consumer protection, company law, cyber law, property, employment, family law, and taxation into short, actionable answers, cross-referenced to the detailed chapters earlier in this knowledge base for further context.

### **15.15 Legal Notes**

These answers are general and educational. Actual outcomes depend on specific facts, applicable state amendments, and current law; consult a qualified lawyer for advice on a specific situation.